

AN APPRAISAL REPORT
OF AN

OFFICE/SHOP BUILDING

LOCATED AT
589 North 1000 West
Lindon, Utah 84042

REPORT #25.025.C

DATE OF VALUATION
May 28, 2024

PREPARED FOR
Mr. Shawn Bandle
Walter & Greta Bandle Trust
417 South 800 East
Orem, Utah 84097

PREPARED BY
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March 31, 2025

Mr. Shawn Bandley
Walter & Greta Bandley Trust
417 South 800 East
Orem, Utah 84097

SUBJECT: An appraisal report on an office/shop building, located at 589 North 1000 West, Lindon, Utah.

Dear Mr. Bandley:

At your request, I have prepared the following appraisal report on the above referenced property. The purpose of the appraisal report is to determine the "as is" market value with a current valuation date. The "as is" valuation date is May 28, 2024, which is the date designated by the above engaged. The subject was inspected on March 19, 2025. As such, this is a retroactive report. This report will be utilized by Mr. Bandley and his assignees for internal management purposes.

Per your request, the appraisal report has been prepared in a manner to conform to the Uniform Standards of Professional Appraisal Practice (USPAP) adopted by the Appraisal Standards of the Appraisal Foundation.

The "as is" subject property represents an office/shop building of average quality Class "C" construction. The building has 3,976 square feet of gross building area and was constructed new in 1979. The interior has been built-out with 240 square feet (6.0%) of office space and 3,736 square feet (94.0%) of shop space. The shop area represents one large working bay with a total of two overhead doors. The building shares a common wall with the neighboring unit to the north. This wall is also the property line. The building is situated within a 0.43 acre, or 18,731 square foot partially improved site. This equates to a building-to-land ratio of 21.2 percent. This ratio is typical and it is concluded that there is no excess land.

A detailed description of the improvements and basis of valuation is found in the following report. All measurements are based on physical inspection of the property and information provided by the Utah County Recorder.

Mr. Bandley
March 31, 2025
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In the valuation process, only the Sales Comparison Approach has been expanded and reconciled into a final value estimate. Because the subject is short term leased, the Income Capitalization Approach is not needed for credible results. Given the age of the building, the Cost Approach is not considered to be applicable. The subject is tenant occupied based on a month to month lease. Given the short term nature of the lease, the valuation will pertain to the fee simple estate. Based on current marketing conditions, the estimated exposure/marketing time for the subject property is six to twelve months.

After careful consideration of the information contained within this report, I am of the opinion that the "as is" market value of the subject property with fee simple property rights, as of May 28, 2024, is:

\$1,100,000

"ONE MILLION ONE HUNDRED THOUSAND DOLLARS"

The valuation date is May 28, 2024 and the subject was inspected on March 19, 2025. As such, this is a retroactive appraisal. It is assumed that the subject was in similar condition on May 28, 2024 as it was on the March 19, 2025 inspection date.

No items of personal property have been included in the value estimate. This letter of transmittal is not to be misconstrued as an appraisal report, but merely indicates the final value estimate developed in the following report. The following appraisal report provides supporting data, assumptions, and justifications for my final value conclusions. The appraisal is made subject to the general assumptions and limiting conditions stated at the end of the report. Please call if there are any questions.

Respectfully submitted,



Bradford Dyreng, MAI

Utah State - Certified General Appraiser License # 6168334-CG00 (Exp. 11/30/25)
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SUMMARY OF IMPORTANT CONCLUSIONS

SUBJECT: Office/Shop Building

LOCATION: 589 North 1000 West, Lindon, Utah

HIGHEST AND BEST USE:
Land as if Vacant - Light industrial/office/retail uses.
Property as Improved - For continuation of the existing office/shop use.

SITE AREA: 0.43 acres, or 18,731 square feet. The site has been improved with gravel/road base surface.

IMPROVEMENTS: An average quality Class "C" office/shop building. The building has 3,976 square feet of gross building area, built-out with 240 square feet (6.0%) of office space and 3,736 square feet (94.0%) of shop/warehouse space. The building components represent average quality block construction with block facade and pitched metal roof. There are two overhead doors providing access to the shop area.

YEAR BUILT: 1979

EFFECTIVE AGE: 15 years

FRONTAGE: 99.00 feet along Geneva Road, a major collector.

ZONING: MC; (Mixed Commercial - Lindon City)

OWNER OF RECORD: Walter Rulon & Greta Olsen Bandlely

ASSESSOR'S PARCEL NO.: 14:053:0049

APPRAISED INTEREST: Fee Simple Estate

VALUATION DATE: May 28, 2024

DATE OF INSPECTION: March 19, 2025

DATE OF REPORT: March 31, 2025

SUMMARY - CONTINUED

VALUATION CONCLUSIONS ("AS IS"):

Cost Approach:	\$	n/a
Sales Comparison Approach:	\$	1,100,000
Income Capitalization Approach:	\$	n/a

CONCLUDED "AS IS" VALUE:	\$	1,100,000
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Site/Building Value:	\$	0
Personal Property	\$	0

EXPOSURE/MARKETING TIME:	Six to twelve months
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IDENTIFICATION OF THE PROPERTY

The property to be appraised represents an office/shop building located at 589 North 1000 West, Lindon, Utah. The property is identified by the Utah County Recorder as tax parcel number 14:053:0049. The legal description of this tax parcel, as provided by the Utah County Recorder's Office, can be found in the addendum.

PURPOSE AND USE OF THE APPRAISAL

The purpose of the appraisal is to estimate the "as is" fee simple market value of this property as of May 28, 2024. The subject was physically inspected on March 19, 2025, by Bradford Dyreng. As such, this is a retroactive appraisal. It is assumed that the subject was in similar condition on May 28, 2024 as it was on the March 19, 2025 inspection date.

The appraisal was ordered by Mr. Shawn Bandley with the Walter & Greta Bandley Trust. The report will be utilized by Mr. Bandley and the Walter & Greta Bandley Trust and their assignees for internal management purposes.

SCOPE OF THE APPRAISAL ASSIGNMENT

I have performed an extensive investigation in the local marketplace for valuation of the subject property. The subject property was thoroughly inspected on March 19, 2025, by Bradford Dyreng. I have been asked to present the market data and conclusion of value with the current valuation date. My research included, but was not limited to, talking with local property owners, city and county officials, brokers, appraisers, and local business owners. All of the sales data and rental information has been verified.

In the valuation process, the Sales Comparison Approach has been developed and reconciled into a final value estimate. The Income Capitalization Approach is not needed to produce credible results. Because of the age of the building, the Cost Approach is not considered applicable.

To report the assignment results, we use the Appraisal Report option of Standards Rule 2-2(a) of the 2024-2025 edition of the Uniform Standards of Professional Appraisal Practice (USPAP). USPAP gives appraisers the flexibility to vary the level of information in an Appraisal Report depending on the intended use and intended users of the appraisal. In this report, the analysis is performed at a moderate level of detail. It summarizes the information analyzed, the appraisal methods employed, and the reasoning that supports the analyses, opinions, and conclusions. It meets or exceeds the former Summary Appraisal Report requirements that were contained in the 2012-2013 edition of USPAP.

Understanding that Utah is a non-disclosure state, information used in this report is as reliable as practical.

DEFINITION OF MARKET VALUE

The definition of "MARKET VALUE", as used in this report, is as follows:

"The most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

1. Buyer and seller are typically motivated;
2. Both parties are well informed or well advised, and each acting in what they consider their own best interests;
3. A reasonable time is allowed for exposure in the open market;
4. Payment is made in terms of cash in U.S. dollars or in terms of financial arrangements comparable thereto; and
5. The price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale."¹

DEFINITION OF "AS IS" PREMISE

The definition of "AS IS", as used in this report, is based on the following:

"Market Value "as is" on appraisal date means an estimate of the market value of a property in the condition observed upon inspection and as it physically and legally exists without hypothetical conditions, assumptions, or qualifications, as of the date the appraisal is prepared."²

¹ *Federal Register*, Volume 55, Number 163, (August 22, 1990), 34228 and 34229; also quoted in the Definitions Section of the *Uniform Standards of Professional Appraisal Practice*, 1996 ed., and *The Appraisal of Real Estate*, 11th ed. (Chicago: Appraisal Institute, 1996), 23.

² Appraisal Policies and Practices of Insured Institutions and Service Corporations, Federal Home Loan Bank Board, "Final Rule, 12 CFR Parts 563 and 571, December 21, 1987.

PROPERTY RIGHTS APPRAISED

The subject is leased on a short term basis. As such, the valuation will pertain to the fee simple estate. The definition of a fee simple property right is as follows:

Fee Simple Estate

"Absolute ownership unencumbered by any other interest or estate; subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power, and escheat."³

DATE OF APPRAISAL

The valuation date is May 28, 2024 and the subject was inspected on March 19, 2025. As such, this is a retroactive appraisal. It is assumed that the subject was in similar condition on May 28, 2024 as it was on the March 19, 2025 inspection date.

REPORT COMPLETION DATE

The report completion date is March 31, 2025.

STATEMENT OF OWNERSHIP

According to the Utah County Assessor's Office, the subject property is currently vested in the name of Walter Rulon & Greta Olsen Bandlely.

³ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed., (Chicago: Appraisal Institute, 1996), 137.

HISTORY OF PROPERTY

The subject has been owned by Walter Rulon & Greta Olsen Bandley or related entity for many years. Over the past several years the subject has been leased on a short term basis. Currently the subject is leased on a full service basis at \$2,000 per month or \$6.03 per square foot per year. However, because of the short term nature of the lease, it is given little consideration in this report. The subject is not currently listed for sale (as of effective date) nor has it been over the past three years.

The aforementioned represents the only known market activity involving the subject in the past three years.

NEIGHBORHOOD DATA

The neighborhood analysis is an essential and critical section of the appraisal process. It identifies the specific area of analysis in which certain forces and influences will be analyzed in application of the three approaches to value. The forces influencing the neighborhood are very important when considering the immediate and long range use and value of the subject property. A neighborhood is defined as "A group of complementary land uses."⁴ A district is more restrictive in definition and is defined as "A type of neighborhood that is characterized by homogeneous land use."⁵

Geographic Location

Lindon City is located north within Utah County and is part of the greater Utah County area. Utah County is located 45 miles south of metropolitan Salt Lake City, which is the financial center for the Intermountain Region. The Provo/Orem area represents the financial center of Utah County with Provo representing the Utah County seat.

Utah County is surrounded by mountains forming a valley about 10 miles wide and 20 miles long. The Wasatch Mountains on the east and Utah Lake on the west nearly converge to form the south boundary. The north boundary is considered to be the "point of the mountain" which is located just north of Lehi City.

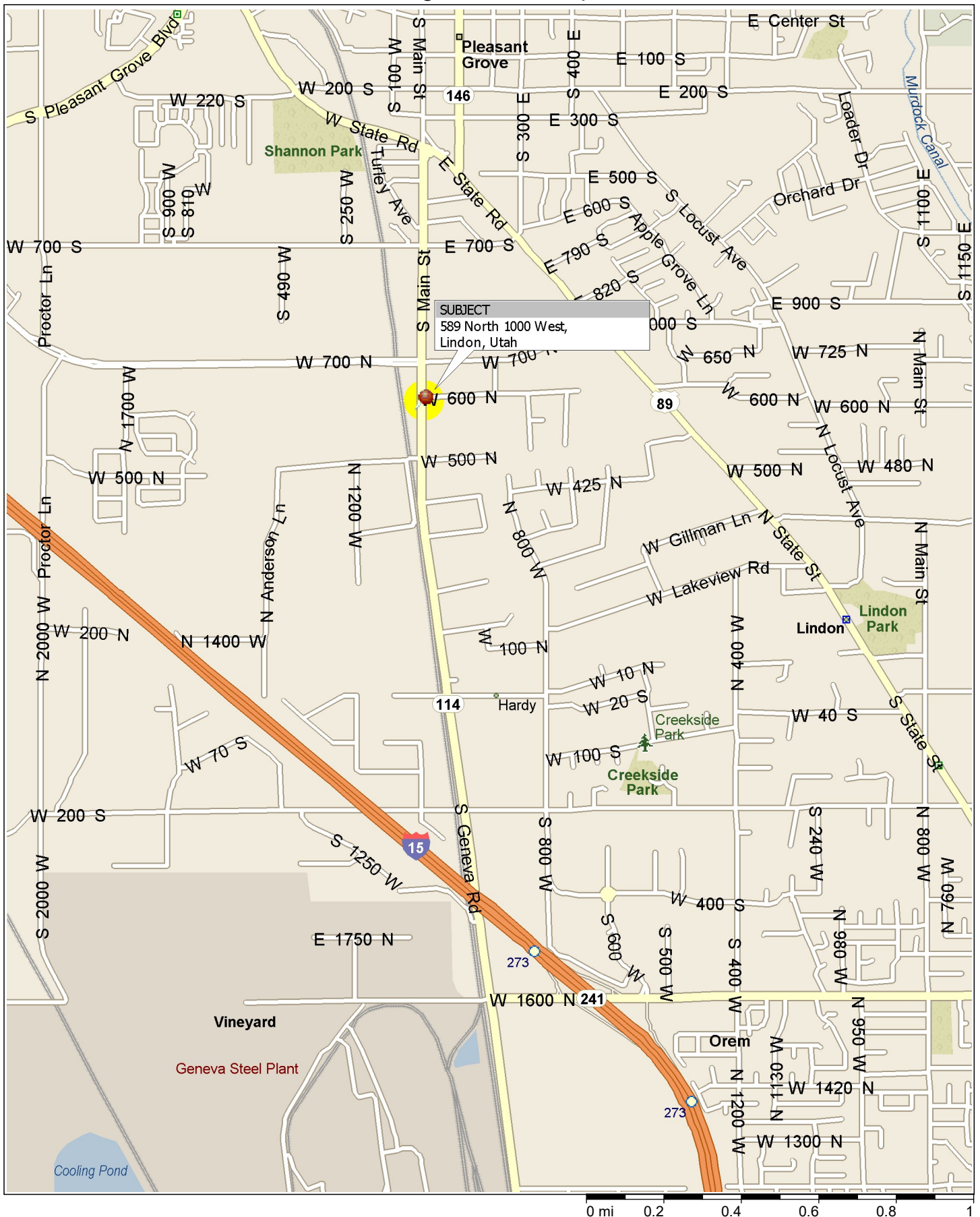
Population

Utah County continues to benefit from strong population growth that comes from both positive attrition and in-migration. The National Census Bureau estimates the Utah County population at 702,434 in 2022, a 35.1 percent total increase from 2010 data. Population figures below are for major cities in Utah County for years 2000, 2010, and 2022.

⁴ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed. (Chicago: Appraisal Institute, 1996), 189.

⁵Ibid,.

Neighborhood Map



AERIAL VIEW



Municipality	2000	2010	2022	Average Annual Change 2010 - 2022
Provo	105,166	112,488	113,523	0.08%
Orem	84,324	88,328	95,910	0.72%
Lehi	19,028	47,407	84,373	6.50%
American Fork	21,941	26,263	37,268	3.49%
Springville	20,424	29,466	35,832	1.80%
Pleasant Grove	23,468	33,509	37,630	1.02%
Spanish Fork	20,246	34,691	44,102	2.26%
Eagle Mountain	2,825	21,415	54,149	12.74%
Saratoga Springs	1,571	18,084	49,354	14.41%
Other	71,988	111,137	146,785	2.67%
County Total	368,536	520,049	702,434	2.92%
State of Utah	2,233,000	2,763,885	3,380,800	1.86%
Source: Utah Department of Workforce Services, Labor Market Information				

The overall Utah County market has grown at an average annual rate of 2.92 percent over the past 12 years, consistent with the state wide average. It is projected that by 2030, Utah County will have a population of 853,711, an average growth rate of 2.69 percent. This is substantially higher than the projections for the State of Utah, which show a 2.39 percent growth rate over the same period. This upward trend will place upward pressure on all real estate sectors.

Employment

The Utah County labor market is characterized by a diversified economy, with concentrations in the service and trade industries. This diversification is apparent by the chart presented on the following page for years 2010, 2014, and 2022.

EMPLOYMENT DATA - UTAH COUNTY				
Industry	Jobs 2010	Jobs 2014	Jobs 2022	Percent Employed
Mining	56	111	271	0.09%
Construction	9,675	16,319	29,595	9.83%
Manufacturing	15,667	17,775	22,936	7.62%
Trans/Trade/Utility	29,033	34,534	47,582	15.81%
Information	7,867	9,995	15,436	5.13%
Finance	6,066	6,802	12,983	4.31%
Services	79,714	94,446	136,740	45.44%
Government	26,589	28,813	33,369	11.09%
Total	174,667	208,795	300,934	100.00%
Source: Utah Department of Workforce Services, Labor Market Information				

Total non-agricultural employment has had an average annual increase of 6.02 percent since 2010. Some of the larger employers include Brigham Young University, Intermountain Health Care, IM Flash, NuSkin, Nestle Prepared Foods, Adobe Systems, and DoTerra.

As of July 2024, Utah County and the State of Utah as a whole reported unemployment at 3.3 percent and 3.2 percent, down substantially from the high of July 2009 at 8.0 and 7.7 percent, respectively.

According to the Utah Department of Workforce Services, the 2022 per capita income for Utah County was \$50,661. This is below the Utah State level at \$56,019.

Jurisdiction and Proximity

The subject property falls under the jurisdiction of Lindon City, Utah. Lindon City is located north within Utah County. Other cities in close proximity are Orem to the south and Pleasant Grove/American Fork to the north. Provo City, the Utah County seat, is located 3 miles south of Lindon.

Neighborhood Boundaries and Land Uses

Lindon City is a bedroom community to the Provo/Orem metro area. Neighborhood boundaries are considered to be the immediate Lindon area, to include south Pleasant Grove and north Orem. The area within the described boundaries is developed with a mixture of retail, office, industrial, and residential uses.

The majority of the retail and office uses are located along State Street and 600 South Street (Lindon). The strongest concentration of commercial development is located along State Street. Development along this corridor includes a number of retail and office buildings with large retail centers located at major intersections.

Land between Geneva Road and Interstate 15 is developed primarily with industrial uses. Development includes a variety of building types and sizes, much of which is utilized for light manufacturing and/or warehousing purposes.

The remaining land has been developed primarily with single family residential uses. The typical value of the single family homes range from \$450,000 to \$750,000, with some higher priced homes scattered throughout. Multi-family residential development is located at spot locations, as allowed by zoning. The majority of residential uses have been well maintained and continue to perform well.

Immediate Neighborhood

The subject is located just along the west side of heavily traveled Geneva Road. Land to the north/south of the subject, along the Geneva Road corridor, has been developed with a variety of retail/office/industrial uses.

Land to the east and west of Geneva Road corridor has been developed with industrial uses and single family residential development. The majority of the homes have been well maintained and are valued from \$450,000 to \$750,000, with some higher priced homes scattered throughout. Industrial and flex industrial continues to have strong demand.

Access, Transportation, and Traffic Arteries

Primary access to the subject neighborhood from the north/south is provided by State Street and Geneva Road. State Street is a heavily traveled corridor providing access to a number of communities within the Utah County area. Geneva Road is also a heavily traveled corridor. The subject is along the west side of Geneva Road. East/west access is limited to a number of secondary streets. Public transportation in the area is provided by the Utah Transit Authority (UTA) which provides services for the Lindon area along State Street and Geneva Road. Access to Interstate 15 is available 2.5 miles southeast of the subject via 1600 North Street in Orem.

Development Trends - Single Family

The subject neighborhood represents an established neighborhood with much of the land area being built out. Residential development is also occurring within the limited vacant land parcels that remain. A history of residential building permits for the Utah County and Lindon marketplace is summarized in the following table.

UNIT BUILDING PERMITS - UTAH COUNTY/LINDON			
Year	Utah County	Lindon	Lindon's Market Share
2015	4,476	86	1.9%
2016	3,988	36	0.9%
2017	6,837	48	0.7%
2018	6,715	85	1.3%
2019	7,314	136	1.9%
2020	8,419	98	1.2%
2021	12,430	115	0.9%
2022	8,555	77	0.9%
2023	6,045	63	1.0%
2024 - June	3,473	41	1.2%
Source: University of Utah BEBR			

Up until the increase in interest rates in the Spring of 2022, residential demand continued to show high demand. However, the increase in interest rates has softened demand somewhat, placing downward pressure on the market. Much of residential development is taking place in more affordable higher density development. Still, residential values have clearly stabilized with some upward pressures noted.

According to the MLS, there are 22 home listings in the Lindon market, compared to 99 homes sold within the past 12 months. This is an inventory of 2.7 months. In the Utah County market, there are 1,097 listings, compared to 6,236 homes sold in the past 12 months. This is an inventory of 2.1 months. An inventory of less than 12 months is considered to be average to good.

According to most home builders, current demand is for homes priced less than \$500,000. The following table summarizes activity for homes listed/sold under \$500,000 and over \$500,000 within the Utah County and Lindon marketplace.

HOME INVENTORY BY PRICE RANGE - UTAH COUNTY & LINDON				
Location	Price Range	Listings	Sold	Inventory (Months)
Utah County	\$1 to \$500,000	137	1,629	1.0
Utah County	\$500,001 plus	966	4,660	2.5
Lindon	\$1 to \$500,000	0	7	0.0
Lindon	\$500,001 plus	22	92	2.6

In Utah County and Lindon, demand is greater for homes valued over \$500,000. A typical rule of thumb for home builders is that a lot needs to be purchased at 30 percent of the home's value. As such, lots valued more than \$150,000 will be in most demand.

With the recent rise in interest rates, the housing market has softened. Although inventory levels continue to be low, inventory is up from the less than one month experienced prior to March of 2022. The limited amount of inventory has had a positive effect on stabilizing values. Still, most developers report new home values and absorption levels have decreased between 10 to 20 percent from their 2022 highs, with some recent reversal noted.

Development Trends - Multi-Family Development

A recent survey of a number of projects in the immediate neighborhood indicated the following data.

COMPARABLE ABSORPTION SUMMARY			
Name/ Location	Unit Size	Unit Price	Monthly Absorb.
Legacy Spanish Fork	1,784 to 1,784 sf	\$400,000 to \$420,000	2.00
Arrowhead Park Payson	1,425 to 1,450 sf	\$350,000 to \$370,000	2.00
Mapleton Village Mapleton	2,300 to 2,350 sf	\$400,000 to \$420,000	4.50
Eagle Point Eagle Mountain	1,789 to 1,843 sf	\$380,000 to \$405,000	3.50
Northshore Saratoga Springs	1,311 to 2,205 sf	\$380,000 to \$465,000	3.50
Jordan Walk Lehi	1,706 to 1,936 sf	\$435,000 to \$460,000	3.00
Songbird Cove Lindon	1,705 to 2,349	\$585,000 to \$645,000	2.50

The data above is a reflection of the current market. Since the Spring of 2022, due to the increase in interest rates, both values and absorption have decreased by a reported 10 to 20 percent. Still, all developers noted that values and absorption have stabilized with some upward pressures noted.

With the high cost of home ownership, an increasing number of families are needing to rent. A survey of these projects indicated rapid absorption with most projects showing absorption trends at over 10 units per month. Further, all managers report continued increases in the rental rates with most reporting vacancy at/or less than 5 percent. Older, less desirable projects will continue to under perform. With the increase in interest rates, it is anticipated that more people will need to rent, pushing both rental and occupancy rates upwards.

Development Trends - Commercial

Within the Lindon market, commercial development continues to occur at a moderate rate on a demand basis and primarily for the owner occupant. A history of commercial construction within the overall Utah County and Lindon market is detailed in the following table.

COMMERCIAL CONSTRUCTION - UTAH COUNTY/LINDON		
Year	Utah Co. (000)	Lindon (000)
2015	\$451,452.0	\$44,259.0
2016	\$901,707.9	\$19,276.1
2017	\$622,026.6	\$16,520.9
2018	\$523,037.8	\$35,669.0
2019	\$582,391.5	\$42,091.9
2020	\$830,804.7	\$39,988.7
2021	\$833,194.9	\$24,675.1
2022	\$877,996.9	\$22,911.5
2023	\$335,360.5	\$23,606.9
2024 - June	\$311,075.8	\$3,189.9
Source: University of Utah BEBR		

Lindon City continues to capture a high percentage of commercial construction within the Utah County market. According to Lindon City, construction included a number of small retail and office projects scattered throughout the city.

Property Turnover/Vacancy Rates

All real estate sectors are showing strong demand with upward pressures noted. Details as to industrial vacancy within the Utah County marketplace can be found in the following table.

UTAH COUNTY VACANCY - INDUSTRIAL SPACE 2023 & 2019		
Industrial Sector	Vacancy 2023 - 4th	Vacancy 2019 - 4th
Total	4.0%	4.9%
Source: Commerce CRG		

The industrial market continues to remain strong with vacancy being consistent over the past 5 years. The improved occupancy and rental rates continue to edge upward with most of the demand being placed on newer, well located properties. In 2023, there was 2,251,623 square feet of new construction, with 1.7 million square feet of absorption. Asking rates typically range from \$11.00 to \$12.50 per square foot, triple net, and trending upwards. The forecast for industrial space is for continued strong growth, with vacancy and rental rates remaining stable in the short term.

In the industrial sector there are no indications that the market is being over improved. As such, values should remain stable to improving going forward.

Details as they pertain to the office and retail sectors are summarized in the following table.

UTAH COUNTY VACANCY - OFFICE/RETAIL SPACE 2023 & 2019		
Office	Available 2023 - 4th	Available 2019 - 4th
Total	11.2%	9.5%
Retail		
Total	2.4%	5.4%
Source: Commerce CRG		

The office market remains relatively soft continuing to suffer due the number of employees that continue to work from home. Still, vacancy has been consistent over the past five years. In 2023, there was 68,000 square feet of new construction and 128,825 square feet of negative absorption, most of which was high quality space located in the north Utah County area. The average lease rate is \$24.38 per square foot, full service. The majority of the softness in the office market comes from large institutional space with employees continuing to work from home. The small market space continues to remain very strong.

The retail sector vacancy continues to show signs of improvement with vacancy being down from the 5.4 percent of 2019. In 2023, there was 196,086 square feet of new construction with 173,488 square feet of absorption. The average lease rate was \$24.67 per square foot, triple net. The majority of the softness in the retail market is coming from large box space with smaller space continuing to be in strong demand.

In both the office and retail sectors, there are no indications that the market is being over improved. As such, values should remain stable going forward.

Positive/Negative Influences

The Lindon neighborhood continues to develop at moderate rates in all real estate sectors. The immediate neighborhood represents a mixed use neighborhood that offers above average access to residential services and the interstate. No negative influences were noted.

Governmental and Legal Influences

The neighborhood is within Lindon City jurisdiction. Lindon City services are considered adequate for local businesses and residences. Services provided to the neighborhood by Lindon City include street maintenance, garbage pick-up, police, and fire protection.

Availability and Adequacy of Public Utilities

All utilities such as water, sewer, electricity, telephone, natural gas, and storm drainage systems have been provided throughout the neighborhood. The cost of utilities in this neighborhood is competitive with all other locations in the Utah County area.

Nuisances, Hazards, and Adverse Influences

At this time, no significant detrimental influences exist relative to the neighborhood. An inspection and analysis of the subject neighborhood was performed and no items of external obsolescence were observed. Due to zoning restrictions and other legal considerations, no future detriments are anticipated.

Conformity of Development and Uses

The subject property is zoned for mixed commercial uses. According to *The Appraisal of Real Estate*, conformity is defined as "the appraisal principle that holds that real property value is created and sustained when the characteristics of a property conform to the demands of its market."⁶ It is necessary to analyze the conformance of the subject with regard to the surrounding uses since the conformance principle has a strong influence on the subject property's value.

Lindon City has done a good job in providing areas for commercial and residential development. The zoning for the subject property conforms well with the existing uses in the neighborhood. No change in zoning is anticipated.

Neighborhood Life Stage

According to *The Appraisal of Real Estate*, neighborhoods evolve through four stages which are as follows:

1. "Growth - a period during which the neighborhood gains public favor and acceptance.
2. Stability - a period of equilibrium without marked gains or losses.
3. Decline - a period of diminishing demand.
4. Revitalization - a period of renewal, modernization, and increasing demand."⁷

The neighborhood is considered to be in the growth stage of its life cycle. Growth is occurring at stable rates within all real estate sectors.

⁶ Ibid., 41.

⁷ Ibid., 174.

Neighborhood Conclusion

The general neighborhood of the subject property has well defined boundaries and is located within Lindon City jurisdiction. The neighborhood is serviced by all necessary utilities and has adequate access to major traffic arteries and the interstate. The neighborhood has well defined zoning which has provided adequate conformity of uses.

The neighborhood is experiencing growth within all real estate sectors. Both the commercial and industrial sectors are showing stable demand with moderate upward pressures noted. There has been some softness noted in the residential sector, with values reported to have leveled off. There are no current or future negative influences in the neighborhood that would severely influence the subject property's use or value.

A snapshot report provided by the Utah Department of Economic Development, as it applies to Utah County, can be found in the addendum of this report. This report shows mid-term trends and graphs which may provide supplementary information to that detailed in the above analysis.

SITE DESCRIPTION AND ANALYSIS

Dimensions, Shape, and Area

According to the plat map, the improved site is an interior parcel located south of 700 North Street along the west side of Geneva Road. The site is rectangular in shape. The legal description, found in the addendum, indicates that the site is 0.43 acres, or 18,731 square feet in size.

The subject's office/shop building is 3,976 square feet in size. Therefore, the subject's improved site has a building-to-land ratio of 21.2 percent (3,976 square foot gross building area divided by 18,731 square foot site). This ratio is typical by comparison to other shop buildings and it is concluded that there is no excess land. A copy of the county plat map can be found on the following page.

Topography and Drainage

The site has mostly level topography, with some sloped areas located east within the site as Geneva Road transitions to the subject site area. The building sits 4-6 feet below the street grade. However, this is consistent with adjoining land parcels.

The natural drainage appears to be in an east to west direction. Curb/gutter and storm drainage are in place along the street frontage. Drainage appears to be adequate and there are no signs of ponding and/or erosion.

According to the FEMA Flood Hazard Publication Maps #49049C0330F, dated June 19, 2020, the subject property is located in flood hazard Zone "X", which is not a flood hazard area and is therefore not negatively influenced by additional flood hazard insurance costs. A flood map can be found in the addendum.

Soil and Subsoil

No environmental report was provided to the appraiser. However, based on existing and surrounding development, the soil appears to have adequate load capacity to support the highest and best use. Further, there are no indications that any of the subject is encumbered with wetlands. The value estimate of this report assumes that the subject site is free of any forms of hazardous waste.

Given the current shop use, a Phase I environmental assessment report is recommended. It is reported that this report is currently being prepared.

[illegible]

SITE PLAN



Utilities

All necessary utilities are located at the subject property and have been stubbed into the building. Each utility service has sufficient capacity to support the subject's highest and best use.

Access and Street Improvements

The overall site has 99.00 feet of frontage on the west side of Geneva Road. Exposure from Geneva Road is very good. Ingress/egress onto the subject property is provided from Geneva Road.

At the subject location, Geneva Road has four travel lanes and is classified as a local/major collector. For office/shop use, the subject has average access and good exposure.

These and other streets in the immediate neighborhood are asphalt paved, in average condition, and publicly dedicated/maintained. It is concluded that ingress/egress is adequate.

Easements, Hazards, and Nuisances

The appraiser has not inspected a title report and cannot certify as to whether there are any easements of record. A review of the plat map and physical inspection of the subject indicated that an active railway line borders the west perimeter of the site.

Other than this easement there are no other easements, building encroachments, hazards and/or nuisances that would reduce the utility of the site. A review of a recently prepared title report is recommended. The value estimate of this report is based on these assumptions.

On-Site Improvements

The on-site improvements associated with the building area include gravel/road base on the majority of the site. The street frontage has curb/gutter and concrete street entryway. These site improvements are located at the building front and east side. The back perimeter of the site, located on the west side of the building, is dirt surfaced. The west side of the site is bordered by an active railway. All of the on-site improvements are below average for this type of improvement, but still typical for this type of building and are in average condition with no signs of deferred maintenance.

Building Improvement Location

The building occupies the western portion of the site. Customer parking is located at the east elevation along the front of the building. Vehicle storage/parking is located on the east side of the building. Access to the shop area and overhead doors, located at the east elevation, is considered adequate.

ZONING

The subject property is located within the incorporated boundaries of Lindon City, Utah, and is under that jurisdiction for zoning and enforcement. The current zoning for the subject and the general neighborhood is MC, which is a Mixed Commercial designation.

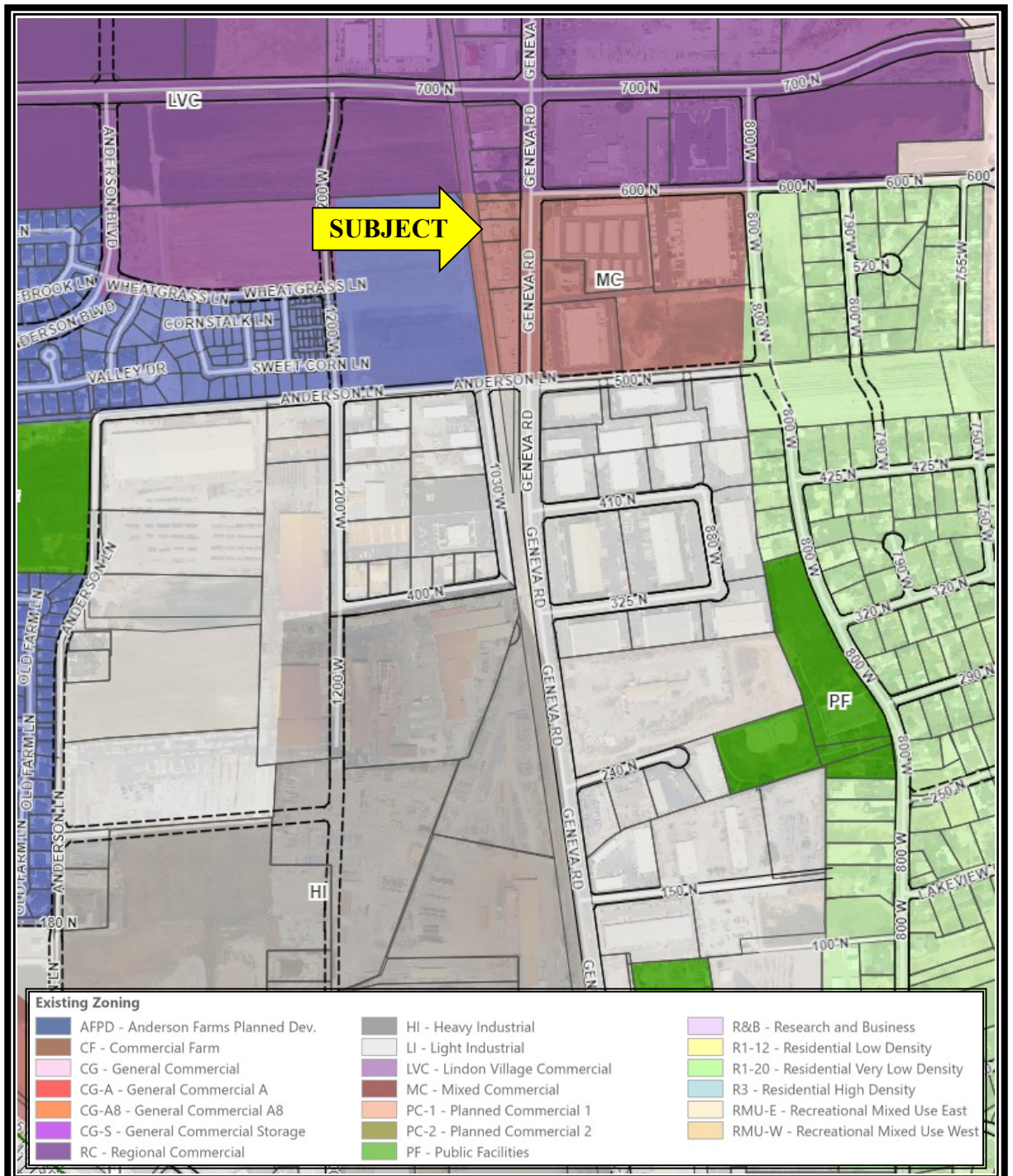
The MC zone was established to promote low-intensity light industrial, research and development, professional and business services, retail, and other commercial uses. The development standards for the MC zone are summarized as follows:

<u>Development Standards</u>	<u>MC</u>
Minimum Lot Area:	1 acre
Maximum Building Height:	48 feet
Minimum Frontage:	100 feet
Minimum Front Yard:	20 feet
Minimum Side Yard:	20 feet when adjacent to a street, 0 feet when not
Minimum Rear Yard:	40 feet when adjacent to a residential zone
Parking:	1 stall per 500 sq. ft. of floor area

The MC zone is consistent with the neighborhood and is not likely to change in the near term. The subject appears to be adequately parked for its current shop use. The frontage at 99.0 feet is just under the requirement as well as site size. However, the subject site plan has been approved by Lindon City and represents a legal and non-conforming use as to frontage and site size.

A copy of the MC zoning ordinance can be found in the addendum. A copy of Lindon City's zoning map, showing the location of the subject, can be found on the following page.

ZONING MAP



IMPROVEMENT DESCRIPTION

General Description of Building

The building description and area are based on physical inspection by Bradford Dyreng on March 19, 2025. The building represents a single level structure of average quality Class "C" construction. The building components are concrete block with concrete block facade. The roof is pitched with metal covering.

The building has a total gross building area of 3,976 square feet, which has been demised into one large shop area and a small office area. A floor plan of the building can be found on the following page. Individual discussion of the respective build-out is as follows:

Office Area

Located north within the building there is a small (240 square feet) office area. This space is finished with concrete flooring and painted gypsum board walls/ceiling. Lighting throughout is provided by ceiling mounted fluorescent light fixtures. The general clear height is 8.5 feet. The climate is controlled by a radiant floor heater.

All of the office area represents average quality finish and is in average condition for its age. In addition, the layout is considered functional for its intended use.

Shop Area

The layout of the shop area includes one large area that has a total of two overhead doors that are used to access the area. The finish of the shop area includes concrete flooring with gypsum board ceiling and concrete block walls. This area is heated with overhead space heaters. Lighting is provided by ceiling mounted fluorescent fixtures. Clear height is 12 feet. All of the shop area is in average condition with no signs of deferred maintenance.

FLOOR PLAN



AREA CALCULATIONS SUMMARY						AREA CALCULATIONS BREAKDOWN				
Code	Description	Factor	Net Size	Perimeter	Net Totals	Name	Base x	Height x	Width =	Area
GBA1	First Floor	1.0	3976.0	278.8	3976.0	First Floor		99.4 x	40.0 =	3976.0
Net BUILDING						1 total items			(rounded)	3,976

Condition, Effective Age, and Functional Utility

The subject building was constructed new in 1979 and has an actual age of 45 years (based on 2024 effective date). Both the building and site improvements are in average condition with no signs of deferred maintenance noted. I have estimated an effective age for the subject at 15 years.

According to *Marshall's Valuation Services*, the building represents an average cost quality Class "C" office/shop building and estimates that the economic life for a building like this is about 45 years. Therefore, the remaining economic life is 30 years.

The improvements are well laid out and functionally adequate for their intended use. The general building materials used and the designs are functional and consistent with current development standards.

American Disabilities Act

The subject has adequate parking for the handicapped but it is not designated as such. Wheelchair ramps are not needed since the main floor is at ground level and has easy access for the handicapped. The interior restrooms have not been designed to conform to A.D.A. standards. The subject does not conform to the American With Disabilities Act of 1990 Overview of Title III.

ASSESSMENT AND TAXES

The subject property is identified by the Utah County Assessor's Office as parcel number 14:053:0049. According to information obtained from the Utah County Assessor's Office, the subject has the following three-year tax history:

THREE YEAR TAX HISTORY					
Year	Land Value	Improvement Value	Total Value	Real Estate Taxes	Percentage Tax Increase
2024	\$240,500	\$183,200	\$423,700	\$3,437.05	12.9%
2023	\$234,400	\$168,700	\$403,100	\$3,044.21	-1.8%
2022	\$232,100	\$164,300	\$396,400	\$3,099.06	n/a

Based on the concluded value of this report, Utah County has under-assessed the subject. As such, there is some risk that the liability could increase in the near term. There are no back taxes owing.

HIGHEST AND BEST USE

Real estate is typically valued in terms of its highest and best use. Highest and best use is defined in *The Appraisal of Real Estate* as:

"The reasonably probable and legal use of vacant land or an improved property, which is physically possible, appropriately supported, financially feasible, and that results in the highest value."⁸

In estimation of the highest and best use, the appraiser must consider these four basic stages of analysis for proposed uses:

1. Legally permissible uses. Are there zoning or deed restrictions that would prohibit proposed uses?
2. Physically possible uses. From the permissible uses, which are physically possible when considering all aspects of the site size, shape, and topography or any other physical aspects?
3. Financially feasible uses. Which of the above legally permissible and possible uses will produce a net return to the owner of the site?
4. Maximally productive or highest and best use. After analyzing the above considerations, which of the proposed uses will produce or generate the highest rate of net return over a projected period of time?

In determining the highest and best use of the subject property, the land is considered under two classifications. The first type is the highest and best use as though vacant; the second is the highest and best use as improved. Each type requires a separate discussion and analysis.

⁸ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed. (Chicago: Appraisal Institute, 1996), 297.

Highest and Best Use - As Vacant

This analysis assumes that the subject parcel of land is vacant or that it can be made vacant through the demolition of the improvements.

Given the subject's commercial zoning and strong exposure to Geneva Road, the highest and best use as vacant is for the development of light industrial shop or office/retail type building. The building should be of average quality and laid out for single or multi-tenant use.

Highest and Best Use - As Improved

The highest and best use of the land as improved considers the existing improvements and whether or not they provide a maximally productive use of the land.

The subject's current improvements are consistent with the highest and best use "as vacant." The building and interior remain in average condition and are fully functional. The building continues to have economic life and contributes to the value of the land. No changes should be made.

VALUATION PROCESS

In general, there are three primary valuation approaches employed within the appraisal profession by which real property is appraised. These are the Cost Approach, the Income Capitalization Approach, and the Sales Comparison Approach.

The use of each approach depends on the type of property and the availability of market data upon which the approach is predicated. The use of more than one approach, and preferably all three, requires a correlation analysis which is, in effect, a checking and refining measure toward a dependable final estimate of value.

As noted earlier in the report only the Sales Comparison Approach will be expanded in this evaluation. The Cost Approach and Income Capitalization Approach are not needed to produce credible results.

SALES COMPARISON APPROACH

The Sales Comparison Approach is a method of estimating market value by comparing similar properties that have sold, or that are currently listed for sale, to the subject. Of primary consideration is the fact that the comparables should have the same highest and best use as the property being appraised while the analysis focuses on the differences between the subject property and the sale comparables. Typical criteria considered are property rights conveyed, terms of sale, conditions of sale, time of sale, economic characteristics, location, size, zoning, and other physical characteristics.

The Sales Comparison Approach is primarily based on the appraisal principle of substitution. Substitution is defined in *The Dictionary of Real Estate Appraisal* as follows: "The appraisal principle that states when several similar or commensurate commodities, goods, or services are available, the one with the lowest price will attract the greatest demand and widest distribution."⁹ Other appraisal principles which apply to this approach include supply and demand, balance, and externalities.

In applying the Sales Comparison Approach, appraisers follow certain procedures or steps. According to *The Appraisal of Real Estate*, the procedure is as follows:

Sale Comparison Approach Procedure

- "1) Research the market to obtain information on sales transactions, listing, and offers to purchase or sell properties that are similar to the subject property in terms of characteristics such as property type, date of sale, size, location, and zoning. (Of particular importance is that they have the same highest and best use as the subject).
- 2) Verify the information by confirming that the data obtained are factually accurate and that the transactions reflect arm's length market considerations.
- 3) Select relevant units of comparison (e.g., dollars per acre, per square foot, or per income multiplier) and develop a comparative analysis for each unit.

⁹ Appraisal Institute, *The Dictionary of Real Estate*, 3rd ed., (Chicago: Appraisal Institute, 1993), 356.

- 4) Compare comparable sale properties with the subject property using the elements of comparison and adjust the sale price of each comparable appropriately to the subject property or eliminate the sale property as a comparable.
- 5) Reconcile the various value indications produced from the analysis of comparables into a single value indication or a range of values."¹⁰

An extensive search was made in the Utah/Salt Lake County marketplaces for similar comparable sales. All of the comparables were arm's length transactions, similar to the subject in highest and best use, and similar in conditions of sale, date of sale, economic factors, and physical characteristics. The search disclosed five comparables which are detailed on the following pages.

¹⁰ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed., (Chicago: Appraisal Institute, 1996), 401.

COMPARABLE SALE ONE**PROPERTY IDENTIFICATION**

Address:	235 East State Street
City/State:	American Fork, Utah
Proximity to Subject:	4.0 miles northeast
Tax Id. Number:	02:026:0026

SALE DATA

Grantor or Seller:	Kenneth L. & Yara L. Murdock
Grantee or Buyer:	T&C Properties and Ventures LLC
Date of Sale:	October 2022
Sales Price:	\$1,294,230
Other:	\$30,770 in deferred maintenance
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$1,325,000
Verification:	Travis Olsen, buyer
Date of Inspection:	February 07, 2025
Estimated Marketing Time:	6 Months
Sale History:	None

IMPROVEMENT DATA

Building Description:	Retail/Shop
Gross Building Area:	4,425 square feet
Number of Stories:	One
Office/Retail Area:	664 square feet, average
Percent Office/Retail:	15.0 percent
Construction:	Class "C"
Quality:	Average
Condition at Sale Time:	Average
Number of Overhead Doors:	3
Year Built:	1992
Age at Sale Time:	30 years
Effective Age at Sale Time:	15 years
Building-to-Land Ratio:	14.0 percent

GENERAL PROPERTY DATA

Zoning:	CC-1, Commercial
Conditions of Sale:	Arm's length
Property Rights Conveyed:	Fee simple
Present Use:	Retail/Office
Highest and Best Use:	Retail/Light Industrial

COMPARABLE SALE ONE - CONTINUED**SITE DATA**

Size:	0.726 acres, or 31,625 square feet
Configuration:	Rectangular
Topography:	Near level
Utilities:	All available to site
Parking:	Adequate
Easements/Restrictions:	None

ECONOMIC DATA

Projected Gross Income:	Owner occupied
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a
Net Income Per Sq.Ft.	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$299.44
Eff. Gross Income Multiplier:	n/a
Overall Capitalization Rate:	n/a

ANALYSIS: This comparable represents a similar quality/aged building located northeast of the subject along State Street in American Fork. This location is considered similar to the subject. Office percentage is slightly superior. Building-to-land ratio is slightly superior to the subject, site improvements are superior. Size is similar. Other physical characteristics are considered similar to the subject.

COMPARABLE SALE TWO**PROPERTY IDENTIFICATION**

Address:	345 North State Street
City/State	Lindon, Utah
Proximity to Subject:	1.5 miles southeast
Tax Id. Number:	14:068:0302

SALE DATA

Grantor or Seller:	Stewart Haun
Grantee or Buyer:	Sterling and Barbara Jones
Date of Sale:	January 2022
Sales Price:	\$1,800,000
Terms/Financing:	Cash to seller
Other:	None
Cash Equivalent Sale Price:	\$1,800,000
Verification:	Mark Ryan, agent (801-420-5689)
Date of Inspection:	May 30, 2022
Estimated marketing time:	Twelve months

IMPROVEMENT DATA

Building Description:	Automotive/service
Gross Building Area:	4,504 square feet
Number of Stories:	One
Construction:	Class "C"
Quality:	Above Average
Condition at Sale Time:	Average
Year Built:	1997
Age at Sale Time:	25 years
Effective Age at Sale Time:	10 years
Office Area/Quality:	984 square feet, average
Office Percentage:	21.8 percent
Clear Ceiling Height:	20 feet
Sprinklered:	No
Number of Overhead Doors:	12 doors
Size of Overhead Doors:	Various
Dock High Floor/Doors:	No
Office Heating/Cooling:	Gas fired heat/air conditioning
Warehouse Heating/Cooling:	Overhead space heaters
Building-to-Land Ratio:	10.0 percent

COMPARABLE SALE TWO - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	CG-A; General Commercial
Conditions of Sale:	Arm's length transaction
Property Rights Conveyed:	Fee simple
Present Use:	Automotive
Highest and Best Use:	Commercial
Rail Service:	No

SITE DATA

Size:	1.04 acres, or 45,302 square feet, fully improved
Configuration:	Rectangular
Topography:	Nearly Level
Utilities:	All municipal utilities
Parking:	Adequate
Parking Ratio:	n/a
Easements/Restrictions:	None noted

ECONOMIC DATA

Lease Type:	n/a
Lease Rate/SF:	n/a
Projected Gross Income:	n/a
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$399.64
Overall Rate:	n/a

ANALYSIS: This comparable represents a superior quality/newer aged building located southeast of the subject in Lindon. This location offers similar exposure when compared to that of the subject. Building size is similar. Downward adjustments are warranted for the comparable's superior percentage of office finish, superior site improvements and superior building-to-land ratio. Other physical characteristics are considered to be similar.

COMPARABLE SALE THREE**PROPERTY IDENTIFICATION**

Address:	1450 West 400 North
City/State:	Orem, Utah
Proximity to Subject:	3.5 miles south
Tax Id. Number:	17:031:0036

SALE DATA

Grantor or Seller:	Advanced Collision Repairs Inc.
Grantee or Buyer:	MCI Holding LLC
Date of Sale:	May 2022
Sales Price:	\$1,850,000
Other:	None
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$1,850,000
Verification:	Mikkel Chadburn, buyer (801-671-8203)
Date of Inspection:	October 07, 2024
Estimated marketing time:	6 months

IMPROVEMENT DATA

Building Description:	Retail/Shop
Gross Building Area:	7,186 square feet
Number of Stories:	One
Construction:	Class "C"
Quality:	Average
Condition at Sale Time:	Average
Year Built:	1971
Age at Sale Time:	51 years
Effective Age at Sale Time:	15 years
Retail Area/Quality:	575 square feet, average quality
Retail Percentage:	8.0 percent
Clear Ceiling Height:	15 feet
Sprinklered:	No
Number of Overhead Doors:	6 (6 bays)
Size of Overhead Doors:	10 x 12
Dock High Floor/Doors:	None
Office Heating/Cooling:	Gas forced air with air conditioning
Shop Heating/Cooling:	Space heaters
Building-to-Land Ratio:	22.5 percent

COMPARABLE SALE THREE - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	M2 - Manufacturing
Conditions of Sale:	Arms Length
Property Rights Conveyed:	Fee Simple
Present Use:	Retail/shop
Highest and Best Use:	Present use as improved
Rail Service:	No

SITE DATA

Size:	0.733 acres, or 31,929 square feet
Configuration:	Rectangular
Topography:	Level
Utilities:	All municipal utilities
Parking:	Adequate
Easements/Restrictions:	None noted

ECONOMIC DATA

Lease Type:	n/a
Lease Date/Terms:	n/a
Lease Rate/SF:	n/a
Projected Gross Income:	n/a
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$257.45
Overall Rate:	n/a

ANALYSIS: This comparable represents a similar quality/similar aged building located south of the subject in Orem. This location is considered to be similar to that of the subject. Building size is larger and an upward adjustment is made. Building-to-land ratio and site improvements are similar to the subject. Retail/office percentage is similar. Other physical characteristics are considered to be similar.

COMPARABLE SALE FOUR**PROPERTY IDENTIFICATION**

Address:	90 North Draper Lane
City/State:	Provo, Utah
Proximity to Subject:	9.0 miles south
Tax Id. Number:	21:018:0009

SALE DATA

Grantor or Seller:	Rey Daniel Wood
Grantee or Buyer:	Hogan & Associates Construction Inc.
Date of Sale:	January 2023
Sales Price:	\$1,200,000
Other:	None
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$1,200,000
Verification:	Brad Naisbitt, agent (801-390-6705)
Date of Inspection:	November 01, 2023
Estimated marketing time:	Six months

IMPROVEMENT DATA

Building Description:	Office/warehouse
Gross Building Area:	5,639 square feet
Number of Stories:	One
Construction:	Class "S"
Quality:	Average
Condition at Sale Time:	Below Average
Year Built:	1969
Age at Sale Time:	54 years
Effective Age at Sale Time:	25 years
Office Area/Quality:	958 square feet, average quality
Office Percentage:	17.0 percent
Clear Ceiling Height:	16 feet
Sprinklered:	No
Number of Overhead Doors:	Two
Size of Overhead Doors:	12x14
Dock High Floor/Doors:	None
Office Heating/Cooling:	Gas forced air with air conditioning
Warehouse Heating/Cooling:	Space heaters
Building-to-Land Ratio:	33.2 percent

COMPARABLE SALE FOUR - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	FC-1 - Commercial
Conditions of Sale:	Arm's length transaction
Property Rights Conveyed:	Fee simple
Present Use:	Office/warehouse
Highest and Best Use:	Present use as improved
Rail Service:	No

SITE DATA

Size:	0.39 acres, or 16,988 square feet
Configuration:	Irregular
Frontage:	Draper lane
Topography:	Level
Utilities:	All municipal utilities
Parking:	Adequate
Parking Ratio:	n/a
Easements/Restrictions:	None noted

ECONOMIC DATA

Lease Type:	n/a
Lease Date/Terms:	n/a
Lease Rate/SF:	n/a
Projected Gross Income:	n/a
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$212.80
Overall Rate:	n/a

ANALYSIS: This comparable represents an inferior quality/older effective aged building located south of the subject in Provo. This location is considered similar to the subject. Building size is similar to the subject building. Office percentage is superior to the subject. Building-to-land ratio is slightly inferior to the subject. Site improvements are superior to the subject. According to the agent, the comparable had some deferred maintenance at the time of sale, this is reflected in the effective age. Other physical characteristics are considered to be similar to those of the subject.

COMPARABLE SALE FIVE**PROPERTY IDENTIFICATION**

Address:	810 West 200 South
City/State:	Lindon, Utah
Proximity to Subject:	1.5 miles south
Tax ID Number:	14:065:0159

SALE DATA

Grantor or Seller:	Arm Properties LLC
Grantee or Buyer:	Siva Diamond Tools Inc.
Date of Sale:	May 2023
Sales Price:	\$1,491,690
Other:	None
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$1,491,690
Verification:	Tyler Shenk, agent (801-833-2880)
Date of Inspection:	March 27, 2025
Estimated Marketing Time:	1 Month
Sale History:	None

IMPROVEMENT DATA

Building Description:	Office/Shop
Gross Building Area:	8,440 square feet
Number of Stories:	One
Construction:	Class "S
Quality:	Average
Year Built:	1980
Age at Sale Time:	43 years
Effective Age at Sale Time:	15 years
Condition at Sale Time:	Average
Office/Retail Area:	900 square feet, average
Percent Office/Retail:	10.7 percent
Clear Ceiling Height:	10-12 feet
Sprinklered:	No
Number of Overhead Doors:	2
Size of Overhead Doors:	Various
Dock High Floor/Doors:	No
Retail Heating/Cooling:	Gas fired heat/air conditioning
Shop Heating/Cooling:	Gas fired heat
Building-to-Land Ratio:	49.7 percent

COMPARABLE SALE FIVE - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	LI; Light Industrial
Conditions of Sale:	Arm's length
Property Rights Conveyed:	Fee simple
Present Use:	Retail/Shop
Highest and Best Use:	Commercial

SITE DATA

Size:	0.39 acres, or 16,988 square feet, not improved
Configuration:	Rectangular
Topography:	Nearly level
Utilities:	All available to site
Parking:	Adequate
Easements/Restrictions:	None

ECONOMIC DATA

Projected Gross Income:	Owner occupied
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a
Net Income Per Sq.Ft.	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$176.74
Eff. Gross Income Multiplier:	n/a
Overall Capitalization Rate:	n/a

ANALYSIS: This comparable represents a inferior quality/similar aged building located south of the subject in Lindon. This location is similar when compared to that of the subject. An upward adjustment is warranted for the comparable's larger size. Office percentage is slightly superior. Site improvements are superior. Other physical characteristics are considered similar.

COMPARABLE PHOTOGRAPHS



COMPARABLE ONE
235 East State Street, American Fork



COMPARABLE TWO
345 North State Street, Lindon



COMPARABLE THREE
1450 West 400 North, Orem

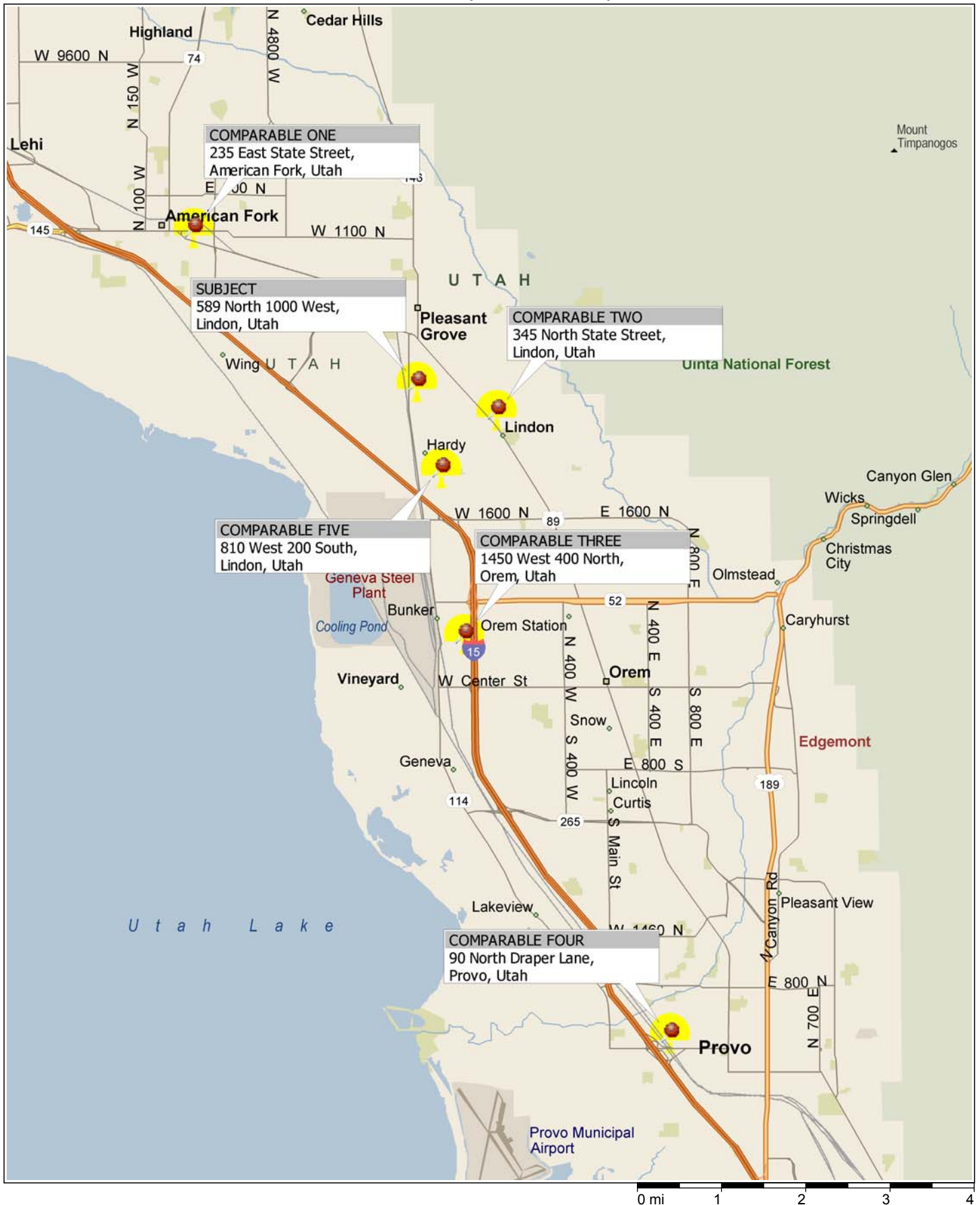


COMPARABLE FOUR
90 North Draper Lane, Provo



COMPARABLE FIVE
810 West 200 South, Lindon

Sale Comparables Map



Analysis of Comparable Data

In determining a market value of the subject, comparables one through five will be utilized. These comparables are summarized in the following table.

IMPROVED SALES SUMMARY							
#	Sale Date	Location	Sale Price	Size (Sq.Ft.)	% Office	Effect. Age	Price/ Sq.Ft.
1	10/22	235 E. State Street, American F.	\$1,325,000	4,425	15.0%	15 yrs	\$299.44
2	01/22	345 N. State Street, Lindon	\$1,800,000	4,504	21.8%	10 yrs	\$399.64
3	05/22	1450 W. 400 North, Orem	\$1,850,000	7,186	8.0%	15 yrs	\$257.45
4	01/23	90 N. Draper Lane, Provo	\$1,200,000	5,639	17.0%	25 yrs	\$212.80
5	05/23	810 W. 200 South, Lindon	\$1,491,690	8,440	10.7%	15 yrs	\$176.74
Subject		589 N. 1000 West, Lindon	n/a	3,976	6.0%	15 yrs	n/a

Improved Sale Analysis and Unit of Comparison Selection

The subject will be valued based on the price per square foot method. Prior to adjustments, the comparables indicate a value range from \$176.74 to \$399.64. Variance in prices can typically be attributed to differences in property rights, conditions of sale, date of sale, location, and physical differences. Adjustments will be made to account for these differences.

All of the comparables represent transactions based on typical market motivation and cash to seller terms. As such, no adjustments are warranted for conditions of sale and/or terms of sale.

The subject is being valued in fee simple estate. All of the comparables are based on fee simple transactions. As such, no adjustments will be made.

As to market conditions, values increased rapidly until the Spring of 2022 when values began to stabilize due to the increase interest rates. A modest 2 percent annual adjustment is applied to the comparables.

As to location and physical differences, factors warranting adjustments as detailed in the "analysis" section of the respective data sheets will be reflected in an adjustment grid found on the following page.

ADJUSTMENT GRID					
	COMPARABLES				
	1	2	3	4	5
Unadjusted Price/SF	\$299.44	\$399.64	\$257.45	\$212.80	\$176.74
Property Rights	0%	0%	0%	0%	0%
Subtotal	\$299.44	\$399.64	\$257.45	\$212.80	\$176.74
Terms of Sale	0%	0%	0%	0%	0%
Subtotal	\$299.44	\$399.64	\$257.45	\$212.80	\$176.74
Conditions of Sale	0%	0%	0%	0%	0%
Subtotal	\$299.44	\$399.64	\$257.45	\$212.80	\$176.74
Market Conditions (Date)	2%	4%	4%	2%	2%
Subtotal	\$305.43	\$415.63	\$267.75	\$217.06	\$180.27
Location Above Average	0% Similar	0% Similar	0% Similar	0% Similar	0% Similar
Quality Block/A	0% Blk/A	-5% Blk/AA	0% Blk/A	5% Steel/A	5% Steel/A
Age/Condition 15 years	0% 15 yrs	-5% 10 yrs	0% 15 yrs	10% 25 yrs	0% 15 yrs
Size 3,976 sf	0% 4,425 sf	0% 4,504 sf	10% 7,186 sf	0% 5,639 sf	10% 8,440 sf
Percent Office 6.0%	-3% 15.0%	-5% 21.8%	0% 8.0%	-3% 17.0%	-1% 10.7%
Building-to-Land 21.2%	-2% 14.0%	-3% 10.0%	0% 22.5%	3% 33.2%	10% 49.7%
Site Improvements Partial	-5% Full	-5% Full	0% Partial	-5% Full	-5% Full
Other/Lower Level None	0% None	0% None	0% None	0% None	0% None
ADJUSTED PRICE/ SQ.FT.	\$274.89	\$320.03	\$294.52	\$238.76	\$214.53
NET ADJUSTMENT	-10%	-23%	10%	10%	19%
GROSS ADJUSTMENT	10%	23%	10%	26%	31%
Mean	\$268.55				

Value Conclusion - Sales Comparison Approach

The comparables range in adjusted sales prices between \$214.53 and \$320.03 per square foot with an average of \$268.55 per square foot. Comparable five is low by comparison and discounted. When giving most weight to comparables one through four and weight to the overall average, a value of \$277.50 per square foot is concluded. At 3,976 square feet, the value of the subject's gross building area is calculated as follows:

\$277.50/SF @ 3,976 SF	\$ 1,103,340
ROUNDED TO	\$ 1,100,000

After careful consideration of the information presented in this section of the report, I am of the opinion that the "as is" market value of the fee simple estate, as of May 28, 2024, is:

\$1,100,000

"ONE MILLION ONE HUNDRED THOUSAND DOLLARS"

RECONCILIATION AND FINAL VALUE ESTIMATE

Reconciliation is the final step in the valuation process where the appraisal report concludes with a final value estimate.

A detailed description of the site, improvements, and other factors concerning the property were discussed. The subject was also analyzed concerning the highest and best use as if vacant and as improved.

It was concluded that the highest and best use as if vacant is for development of light industrial/shop or retail/office uses. The existing improvements are consistent with the highest and best use as vacant.

The next step in the appraisal process was estimating the fee simple title market value of the subject through appraisal methods. The valuation conclusion reached in the report was determined by the Sales Comparison Approach (\$1,100,000). The Income Capitalization Approach and the Cost Approach were not expanded as they are not needed for credible results.

After careful consideration of the information and analysis contained within this report, I am of the opinion that the "as is" market value of the subject property, with fee simple property rights, as of May 28, 2024, is:

\$1,100,000

"ONE MILLION ONE HUNDRED THOUSAND DOLLARS"

CERTIFICATION OF VALUE

I, BRADFORD DYRENG certify that, to the best of my knowledge and belief:

- The statements of fact contained in this report are true and correct.
- The reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions and are my personal, impartial, and unbiased professional analyses, opinions, and conclusions.
- I have no present or prospective interest in the property that is the subject of this report and no personal interest with respect to the parties involved.
- I have not performed other appraisals services, as an appraiser, regarding the property that is the subject of this report within the three-year period immediately preceding acceptance of this assignment.
- I have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
- My engagement in this assignment was not contingent upon developing or reporting predetermined results.
- My compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
- My analyses, opinions, and conclusions were developed, and this report has been prepared, in conformity with the *Uniform Standards of Professional Appraisal Practice*.
- I have made a personal inspection of the property that is the subject of this report.
- No one provided significant real property appraisal assistance to the person signing this certification.
- The reported analyses, opinions, and conclusions were developed, and this report has been prepared, in conformity with the Code of Professional Ethics and Standards of Professional Appraisal Practice of the Appraisal Institute.
- The use of this report is subject to the requirements of the Appraisal Institute relating to review by its duly authorized representatives.

- As of the date of this report, I have completed the continuing education program of the Appraisal Institute.

March 31, 2025
DATE



BRADFORD DYRENG

Utah State - Certified General Appraiser License # 6168334-CG00 (Exp. 11/30/25)
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GENERAL ASSUMPTIONS

This appraisal report has been made with the following general assumptions:

1. The legal description used in this report is assumed to be correct.
2. No survey of the property has been made by the appraiser and no responsibility is assumed in connection with such matters. Sketches in this report are included only to assist the reader in visualizing the property.
3. No responsibility is assumed for matters of a legal nature affecting title to the property nor is an opinion of title rendered. The title is assumed to be good and marketable, unless otherwise stated.
4. Information furnished by others is assumed to be true, correct, and reliable. A reasonable effort has been made to verify such information; however, no responsibility for its accuracy is assumed by the appraiser.
5. All mortgages, liens, encumbrances, leases, and servitudes have been disregarded unless so specified within the report. The property is appraised as though under responsible ownership and competent management.
6. It is assumed that there are no hidden or unapparent conditions of the property, subsoil, or structures which would render it more or less valuable. No responsibility is assumed for such conditions or for engineering which may be required to discover such factors.
7. Full compliance with all applicable federal, state, and local environmental regulations and laws is assumed unless noncompliance is stated, defined, and considered in the appraisal report.
8. It is assumed that all applicable zoning and use regulations and restrictions have been complied with, unless a nonconformity has been stated, defined, and considered in the appraisal report.
9. It is assumed that all required licenses, certificates of occupancy, consents, or other legislative or administrative authority from any local, state, or national government or private entity or organization have been or can be obtained or renewed for any use on which the value estimate contained in this report is based.
10. It is assumed that the utilization of the land and improvements is within the boundaries or property lines of the property described and that there is no encroachment or trespass unless noted in the report.

GENERAL LIMITING CONDITIONS

The appraisal report has been made with the following general limiting conditions:

1. The appraiser will not be required to give testimony or appear in court because of having made this appraisal, with reference to the property in question, unless arrangements have been previously made.
2. Possession of this report, or a copy thereof, does not carry with it the right of publication. It may not be used for any purpose by any person other than the party to whom it is addressed without the written consent of the appraiser, and in any event only with proper written qualification and only in its entirety.
3. The distribution of the total valuation in this report between land and improvements applies only under the reported highest and best use of the property. The allocations of value for land and improvements must not be used in conjunction with any other appraisal and are invalid if so used.
4. Disclosure of the contents of this appraisal report is governed by the By-Laws and Regulations of the Appraisal Institute.

Neither all nor any part of the contents of this report (especially any conclusions as to value, the identity of the appraiser or any reference to the Appraisal Institute or to the MAI designation) shall be disseminated to the public through advertising media, public relations media, sales media or any other public means of communication without the prior written consent and approval of the appraiser.

5. Acceptance of and/or use of this appraisal report constitutes acceptance of the stated general assumptions and limiting conditions.

SPECIAL LIMITING CONDITIONS

1. The liability of Dyreng Real Estate Services is limited to the client only and to the fee actually received by appraiser. Further, there is no accountability, obligation, or liability to any third party. If this report is placed in the hands of anyone other than client, the client shall make such party aware of all limiting conditions and assumptions of the assignment and related discussions. The appraiser is in no way to be responsible for any costs incurred to discover or correct any deficiencies of any type present in the property; physically, financially, and/or legally. In the case of limited partnerships or syndication offerings or stock offerings in real estate, client agrees that in case of lawsuit (brought by lender, partner or part owner in any form of ownership, tenant, or any other party), any and all awards, settlements of any type in such suit, regardless of outcome, client will hold appraiser completely harmless in any such action.
2. The existence of potentially hazardous material on or near the subject site and/or used in the construction or maintenance of any of the buildings, such as the presence of urea-formaldehyde foam insulation, and/or the existence of toxic waste, which may or may not be present on the property, was not observed by myself, nor do I have any knowledge of the existence of such materials on or in the property. The appraiser, however, is not qualified to detect such substances. The existence of urea-formaldehyde foam insulation or other potentially hazardous waste material may have an effect on the value of the property. I urge the client to retain an expert in this field if desired.
3. If there is proposed construction, the appraisal is made subject to satisfactory completion of construction according to architectural plans.

SUBJECT PHOTOGRAPHS



**LOOKING NORTHWESTERLY AT THE
OVERALL SUBJECT**



**LOOKING SOUTHWESTERLY AT THE
SUBJECT BUILDING**



**LOOKING NORTHWESTERLY AT THE
SUBJECT BUILDING**



**LOOKING NORTHEASTERLY AT THE
SUBJECT BUILDING**



**LOOKING EASTERLY AT THE SUBJECT
SITE AREA**



TYPICAL FINISH

SUBJECT PHOTOGRAPHS



TYPICAL FINISH



TYPICAL FINISH



TYPICAL FINISH



TYPICAL FINISH



TYPICAL FINISH



LOOKING SOUTHERLY AT GENEVA ROAD

SUBJECT PHOTOGRAPHS



LOOKING NORTHERLY AT GENEVA ROAD

QUALIFICATIONS OF APPRAISER
BRADFORD DYRENG, MAI
DYRENG REAL ESTATE SERVICES
Real Estate Appraisers and Consultants
1032 North Titan Drive
Lehi, UT 84043

Education

Utah State University, Master of Business Administration, December 2009

Real Estate and Appraisal Courses

Basic Appraisal Principles, Appraisal Institute 02/10
Basic Appraisal Procedures, Appraisal Institute 02/10
15-Hour National USPAP Course 02/10
Online Residential Sales Comparison and Income Approach, Appraisal Institute 03/11
Residential Site Valuation and Cost Approach, Appraisal Institute 03/11
Online Residential Market Analysis and Highest & Best Use, Appraisal Institute 03/11
Residential Report Writing and Case Studies, Appraisal Institute 05/11
Business Practices and Ethics, Appraisal Institute 07/12
General Appraiser Income Approach Part I, Appraisal Institute 03/14
General Appraiser Income Approach Part II, Appraisal Institute 03/14
General Appraiser Sales Comparison Approach, Appraisal Institute 06/14
General Appraiser Site Valuation and Cost Approach, Appraisal Institute 07/14
General Appraiser Market Analysis and Highest & Best Use, Appraisal Institute 09/14
Real Estate Finance Statistics and Valuation Modeling, Appraisal Institute 10/14
General Appraisal Report Writing and Case Studies, Appraisal Institute 11/14
Small Hotel/Motel Valuation, Appraisal Institute 03/15
Subdivision Valuation, Appraisal Institute 03/15
7-Hour Equivalent USPAP Update Course, Appraisal Institute, 05/17
Analyzing Operating Expenses, Appraisal Institute 12/17
Appraising Convenience Stores, Appraisal Institute 12/17
Data Verification Methods, Appraisal Institute 12/17
Advanced Income Capitalization, Appraisal Institute 02/18
Advanced Market Analysis and Highest & Best Use, Appraisal Institute 04/18
Quantitative Analysis 10/2019
Advanced Concepts and Case Studies 11/2019

Work History

Real Estate Appraiser/Consultant
Nielsen and Company, Orem, Utah
March 2010 to February 2020

Real Estate Appraiser/Consultant
Dyrenge Real Estate Services, Draper, Utah
March 2020 to Present

Professional Accomplishments

Certified General Appraiser - State of Utah - License # 6168334-CG - Expires 11/30/2025
Member of the Appraisal Institute - Member ID #539222
MAI Designation - Appraisal Institute - February 2024

Appraisal Experience

Apartment Project: 12 to 120 unit projects.
Eminent Domain: Road widening, wetlands mitigation, utility corridors, and airport expansion.
Hotel/Motel: Hotels and motels ranging from 40 to 120 rooms with convention facilities.
Industrial: Office/warehouse and manufacturing facilities up to 4,000,000 square feet.
Office Building: Single and multi-tenant facilities ranging from 1,000 to 200,000 square feet.
Assisted Living: Various care levels ranging from 8 to 85 wards.
Townhome and Condo projects: Single and multi-phase projects ranging from 10 to 120 units.
Retail: Neighborhood and community centers.
Raw Land: Land ranging from 10 to 1,000 acres.
Subdivisions: Single and multi-phase projects ranging from 4 to 200 lots.
Recreational Properties.

Partial List of Clients Served

Zions First National Bank	Utah Department of Transportation
First Security Bank	Lehi City
Western Bank	American Fork City
Washington Mutual Bank	Provo City
U.S. Bank	Orem City
Bank of American Fork	Utah County
Central Bank	Springville City
Far West Bank	Various attorneys
Brighton Bank	Alpine School District
Holladay Bank and Trust	Credit Bureaus
Orem Community Bank	Various developers and contractors
Banc One	Grand County
Capital Community Bank	LDS Church
American Investment Financial	Versar Engineering
First National Bank	Horricks Engineering
National Bank of Arizona	RBG Engineering
Frontier State Bank	Celtic Bank
Wells Fargo Bank	Silver State Bank
GE Capital Asset Funding	Prudential Mortgage Capital
Merrill Lynch Mortgage Capital Inc.	GMAC Capital Funding
National Mortgage Company	SkyMar Capital Funding
California Bank and Trust	Mountain America Credit Union
Bank of Utah	M & T Mortgage

**STATE OF UTAH
DEPARTMENT OF COMMERCE
DIVISION OF REAL ESTATE**

ACTIVE LICENSE

DATE ISSUED: 12/07/2023

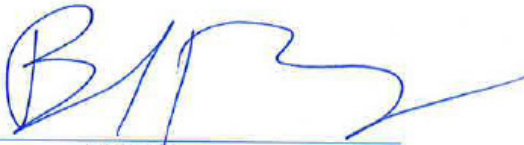
EXPIRATION DATE: 11/30/2025

LICENSE NUMBER: 6168334-CG00

LICENSE TYPE: Certified General Appraiser

BRADFORD BAILEY DYRENG
13923 S ARROW CREEK DR
DRAPER UT 84020




SIGNATURE


REAL

ADDENDUM

DEFINITIONS

These definitions have been extracted, solely or in combination, from definitions and descriptions printed in:

- The Dictionary of Real Estate Appraisal, Fourth Edition, Appraisal Institute, Chicago, Illinois, 2002 (Dictionary).
- The Appraisal of Real Estate, Twelfth Edition, Appraisal Institute, Chicago, Illinois, 2001 (Twelfth Edition).
- Marshall Valuation Service, Marshall & Swift, Los Angeles, California, (MVS).

Absolute Net Lease

A lease in which the tenant pays all expenses including structural maintenance and repairs; usually a long-term lease to a credit tenant. (*Dictionary*)

Accrued Depreciation

The difference between the reproduction or replacement cost of the improvements on the effective date of the appraisal and the market value of the improvements on the same date. (*Dictionary*)

Deferred Maintenance

Curable, physical deterioration that should be corrected immediately, although work has not commenced; denotes the need for immediate expenditures, but does not necessarily suggest inadequate maintenance in the past. (*Dictionary*)

Discounted Cash Flow (DCF) Analysis

The procedure in which a discount rate is applied to a set of projected income streams and a reversion. The analyst specifies the quantity, variability, timing, and duration of the income streams as well as the quantity and timing of the reversion and discounts each to its present value at a specified yield rate. DCF analysis can be applied with any yield capitalization technique and may be performed on either a lease-by-lease or aggregate basis. (*Dictionary*)

Effective Date

The date at which the analyses, opinions, and advice in an appraisal, review, or consulting service apply. (*Dictionary*)

Entrepreneurial Incentive

A market-derived figure that represents the amount an entrepreneur expects to receive as compensation for providing coordination and expertise and assuming the risks associated with the development of a project. (*Twelfth Edition*)

Entrepreneurial Profit

A market-derived figure that represents the amount an entrepreneur receives for his or her contribution to a project and risk; the difference between the development cost of a property and its market value upon completion and stabilization, which represents the entrepreneur's compensation for the risk and expertise associated with development.

Entrepreneurial profit is an amount earned, estimated after completion, while entrepreneurial incentive is an amount anticipated, prior to development. (*Twelfth Edition*)

Exposure Time

The time a property remains on the market. The estimated length of time the property interest being appraised would have been offered on the market prior to the hypothetical consummation of a sale at market value on the effective date of the appraisal; a retrospective estimate based on an analysis of past events assuming a competitive and open market. Exposure time is always presumed to occur prior to the effective date of the appraisal. The overall concept of reasonable exposure encompasses not only adequate, sufficient and reasonable time but also adequate, sufficient and reasonable effort. Exposure time is different for various types of real estate and value ranges and under various market conditions. (*Dictionary*)

Fee Simple Estate

Absolute ownership unencumbered by any other interest or estate, subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power, and escheat. (*Dictionary*)

Floor Area Ratio (FAR)

The relationship between the above-ground floor area of a building, as described by the building code, and the area of the plot on which it stands; in planning and zoning, often expressed as a decimal, e.g., a ratio of 2.0 indicates that the permissible floor area of a building is twice the total land area. (*Dictionary*)

Gross Building Area (GBA)

The total floor area of a building, including below-grade space but excluding unenclosed areas, measured from the exterior of the walls. All enclosed floors of the building including basements, mechanical equipment floors, penthouses, and the like are included in the measurement. Parking spaces and parking garages are excluded. (*Dictionary*)

Gross Lease

A lease in which the landlord receives stipulated rent and is obligated to pay all or most of the property's operating expenses and real estate taxes. (*Dictionary*)

Highest and Best Use

The reasonably probable and legal use of vacant land or an improved property, which is physically possible, appropriately supported, financially feasible, and that results in the highest value. The four criteria the highest and best use must meet are legal permissibility, physical possibility, financial feasibility, and maximum profitability. (*Dictionary*)

Industrial Property Classifications

Distribution Warehouse - High cube single-story structures with clear ceiling heights of at least 22 feet to allow three stacking heights of seven feet each. The most common height in this market is 24-foot clear ceiling height. Some distribution buildings now have clear ceiling heights as high as 40 feet or more due to the introduction of robotic computer systems, which allow very narrow aisles and high stacking. In general, column spacing is wider than that in office warehouse buildings and office build-out is minimal, generally 10% or less.

(Definitions Continued)

Flex - Buildings designed with warehouse capabilities such as dock-high or drive-in loading doors and clear ceiling heights of 14 to 16 feet. However, they are termed flex based on their broad range of office finish and their single-story exterior office appearance. The level of office finish typically ranges from 30% to 70% and suites can be divided into relatively small units. Research & Development (R&D) buildings are generally the same as flex warehouse construction but with higher percentages of office finish, often up to 90%.

Manufacturing - Buildings intended to provide space in which to transform, fabricate, or assemble physical resources into other physical goods. These buildings can vary greatly in design, with low clear ceiling heights of 12 feet, to very high clear ceiling heights of 30 feet or more, according to specific industry needs.

Office Warehouse - Generally single-story buildings with clear ceiling heights ranging from about 16 feet to 21 feet. The level of office finish is shaped by the needs of individual tenants, the general uses within the market area, and the availability of parking. The level of office finish typically ranges from 10% to 20%. Suites are typically larger than flex warehouse space. These buildings usually have drive-in bays, dock height bays, or a combination thereof and are used for light manufacturing, services, and small-scale distribution businesses.

Insurable Value

Value used by insurance companies as the basis for insurance. Often considered to be replacement or reproduction cost plus allowances for debris removal or demolition less deterioration and noninsurable items. Sometimes cash value or market value, but often entirely a cost concept. *(MVS)*

Leased Fee Interest

An ownership interest held by a landlord with the rights of use and occupancy conveyed by lease to others. The rights of the lessor (the leased fee owner) and the lessee are specified by contract terms contained within the lease. *(Dictionary)*

Leasehold Interest

The interest held by the lessee (the tenant or renter) through a lease transferring the rights of use and occupancy for a stated term under certain conditions. *(Dictionary)*

Market Rent

The rental income a property would probably command in the open market; indicated by the current rents that are either paid or asked for comparable space as of the date of the appraisal. *(Twelfth Edition)*

Market Value

The most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

(Definitions Continued)

- buyer and seller are typically motivated;
- both parties are well informed or well advised, and acting in what they consider their best interests;
- a reasonable time is allowed for exposure in the open market;
- payment is made in terms of cash in United States dollars or in terms of financial arrangements comparable thereto; and
- the price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale. (*Dictionary; 12 C.F.R. Part 34.42(g); 55 Federal Register 34696, August 24, 1990, as amended at 57 Federal Register 12202, April 9, 1992; 59 Federal Register 29499, June 7, 1994*)

Marketing Time

The time it takes an interest in real property to sell on the market subsequent to the date of an appraisal. Reasonable marketing time is an estimate of the amount of time it might take to sell an interest in real property at its estimated market value during the period immediately after the effective date of the appraisal; the anticipated time required to expose the property to a pool of prospective purchasers and to allow appropriate time for negotiation, the exercise of due diligence, and the consummation of a sale at a price supportable by concurrent market conditions. (*Dictionary*)

Modified Gross Lease

A lease in which the landlord receives stipulated rent and is obligated to pay most, but not all, of the property's operating expenses and real estate taxes. (*Dictionary*)

Net Lease

Generally a lease in which the tenant pays for utilities, janitorial services, and either property taxes or insurance, and the landlord pays for maintenance, repairs, and the property taxes or insurance not paid by the tenant. Also called *single net lease*, *modified gross lease*, and *semi-gross lease*; sometimes used synonymously with *single net lease* but better stated as a *partial net lease* to eliminate confusion. (*Dictionary*)

Net Net Lease

Generally a lease in which the tenant pays for utilities, janitorial services, property taxes, and insurance in addition to the rent, and the landlord pays for maintenance and repairs. Also called *double net lease*, *NN*, *modified gross lease*, and *semigross lease*; sometimes used synonymously with *single net lease* but better stated as a *partial net lease* to eliminate confusion. (*Dictionary*)

Net Net Net Lease

A net lease under which the lessee assumes all expenses of operating a property, including both fixed and variable expenses and any common area maintenance that might apply, but the landlord is responsible for structural repairs. Also called *triple net lease* or *NNN* but better stated as a fully net lease. (*Dictionary*)

Prospective Value Opinion

A forecast of the value expected at a specified future date. A prospective value opinion is most frequently sought in connection with real estate projects that are proposed, under construction, or under conversion to a new use, or those that have not achieved sellout or a stabilized level of long-term occupancy at the time the appraisal report is written. (*Dictionary*)

Rentable Area (RA)

The amount of space on which rent is based, calculated according to local practice. (*Dictionary*)

Replacement Cost

The estimated cost to construct, at current prices as of the effective appraisal date, a building with utility equivalent to the building being appraised, using modern materials and current standards, design and layout. (*Dictionary*)

Reproduction Cost

The estimated cost to construct, at current prices as of the effective date of the appraisal, an exact duplicate or replica of the building being appraised, using the same materials, construction standards, design, layout, and quality of workmanship and embodying all the deficiencies, superadequacies, and obsolescence of the subject building. (*Dictionary*)

Stabilized Occupancy

Occupancy at that point in time when abnormalities in supply and demand or any additional transitory conditions cease to exist and the existing conditions are those expected to continue over the economic life of the property; the optimum range of long term occupancy which an income-producing real estate project is expected to achieve under competent management, after exposure for leasing in the open market for a reasonable period of time at terms and conditions comparable to competitive offerings. (*Dictionary*)

Usable Area

The area available for assignment or rental to an occupant, including every type of usable space; measured from the inside finish of outer walls to the office side of corridors or permanent partitions and from the centerline of adjacent spaces; includes subdivided occupant space, but no deductions are made for columns and projections. (*Dictionary*)

Value As Is

The value of specific ownership rights to an identified parcel of real estate as of the effective date of the appraisal; relates to what physically exists and is legally permissible and excludes all assumptions concerning hypothetical market conditions or possible rezoning. (*Dictionary*)

ECONOMIC SNAPSHOT

Utah County

Select Area
Utah County



Year-to-Year Change in Nonfarm Jobs December 2023

↑ 5,541

↑ 1.8%

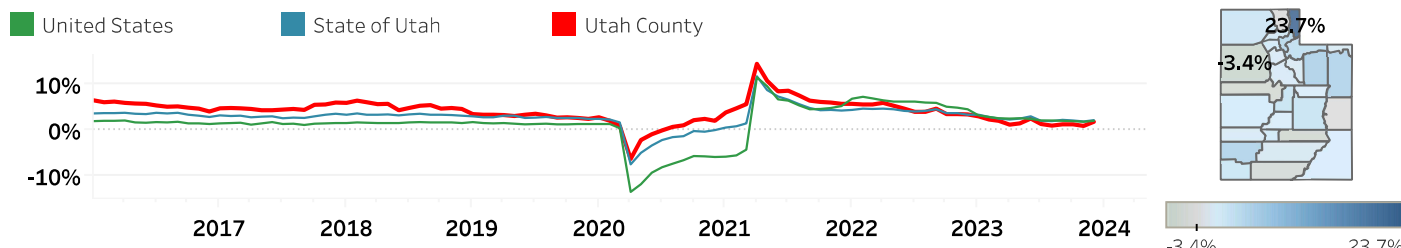
Utah County

↑ 2.1%

State of Utah

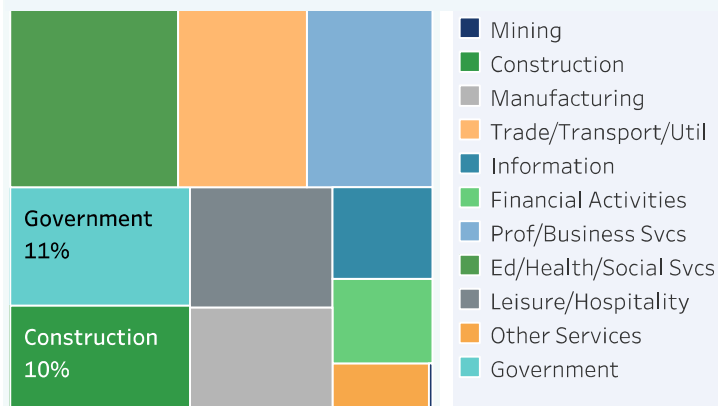
↑ 2.0%

United States



15	Mining	5.5%
448	Construction	1.5%
444	Manufacturing	1.9%
-646	Trade/Transport/Util	-1.3%
-2,360	Information	-15.6%
164	Financial Activities	1.3%
-294	Prof/Business Svcs	-0.6%
4,846	Ed/Health/Social Svcs	7.9%
812	Leisure/Hospitality	3.0%
169	Other Services	2.3%
1,939	Government	5.7%

Employment Share 12 Months ending December 2023**



How's the economy?

Job growth in Utah County was slightly lower than the statewide growth rate over the year ended December 2023, as a 15.6% decline in information sector jobs weighed upon the county's employment gains. However, average monthly wages in the sector outpaced those in the rest of the county, growing by 10.5% over the year compared to the county's overall wage growth rate of 4.5%.

Spending activity in the county was mixed in 2023. Higher financing costs weighed on construction activity and taxable business investments were largely flat in the fourth quarter of 2023. However, consumer spending remained robust with taxable services and retail trade rising, 6.5% and 2.9%, respectively, in the fourth quarter.

Jobs

Utah County added 5,541 jobs over the year ended December 2023, primarily due to increases in the educational, health and social services sector, which added 4,846 positions to local payrolls. At 20% of the county's nonfarm employment, this sector employs the largest share of people in Utah County.

Job gains in the educational, health and social services sector offset losses in the information sector, which shed 2,360 positions over the year, amid a nationwide increase in layoffs in the tech sector. The information industry employs 14,492 people and makes up 5% of the county's total nonfarm employment.

* Preliminary. Source: U.S. Bureau of Labor Statistics; Utah Department of Workforce Services.

jobs.utah.gov/wi/insights/county/utah.html

Gwen Kervin, gkervin@utah.gov

ECONOMIC SNAPSHOT Utah County

Select Area
Utah County



Seasonally Adjusted Unemployment Rate March 2024

2.8%

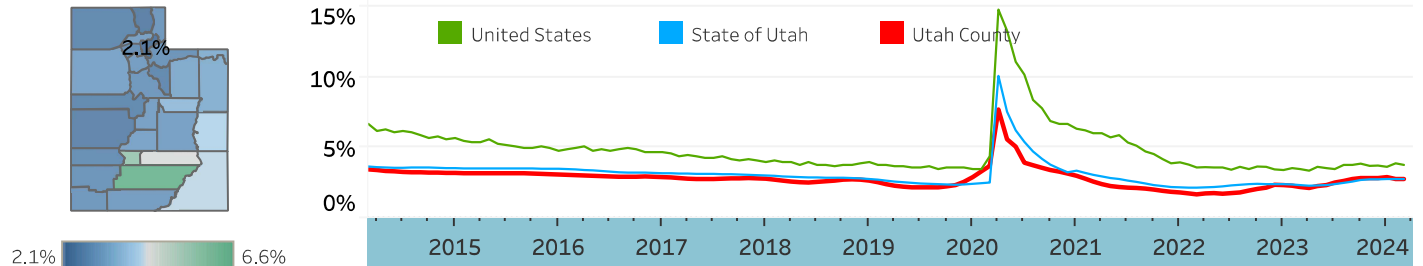
Utah County

2.8%

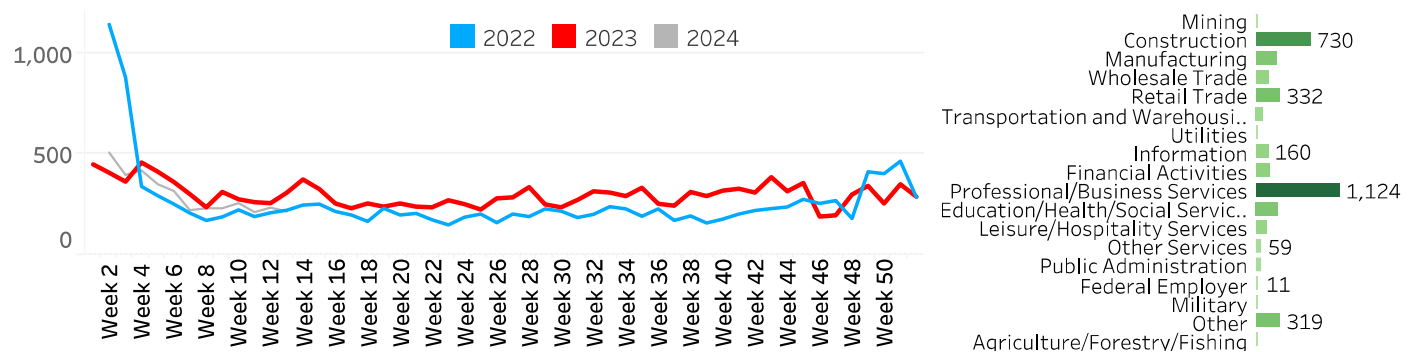
State of Utah

3.8%

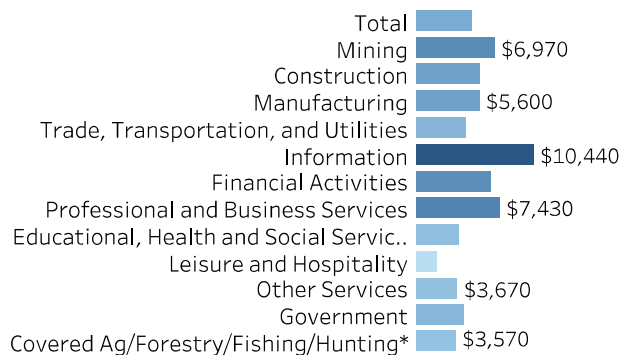
United States



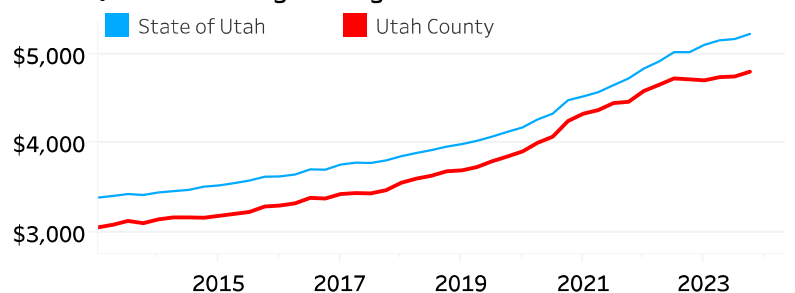
Initial Claims for Unemployment Insurance March 24, 2024 YTD



Average Monthly Wage* Fourth Quarter 2023



Four-Quarter Moving Average



Unemployment & Wages

Utah County's March 2024 unemployment rate came in at 2.8%, in line with that of the state. Unemployment rates in this range point to a healthy labor market.



In spite of a 15.6% decline in employment in the information industry, initial claims for unemployment in the sector remain low. The professional and business services sector has seen the highest number of unemployment claims, in line with statewide trends.



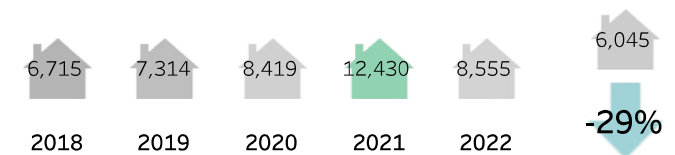
Utah County's four-quarter moving average wage remains below that of the state. Average monthly wages in Utah County grew by 4.5% over the previous 12 months, bolstered by wage gains in the information sector, which increased wages by \$955 a month over the year.



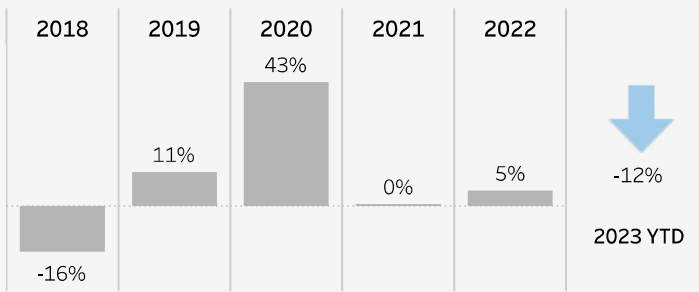
*Preliminary. Source: U.S. Bureau of Labor Statistics and Utah Dept of Workforce Services.

Construction Permitting December 2023 YTD

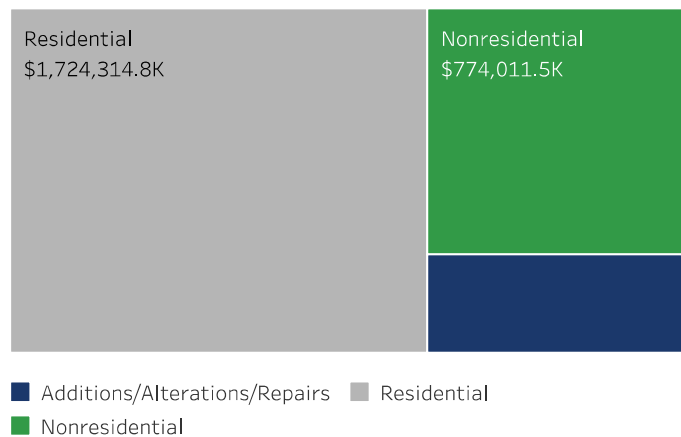
Dwelling Unit Permits



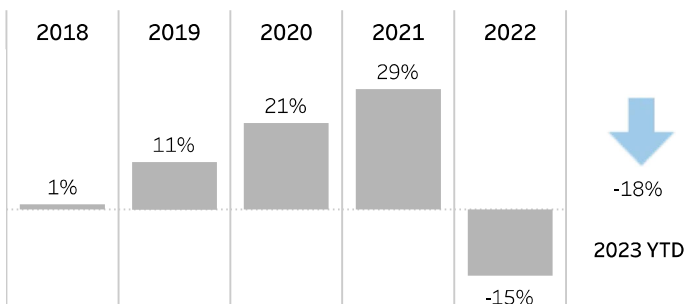
Change in Nonresidential Values



Values to Date



Change in Total Values

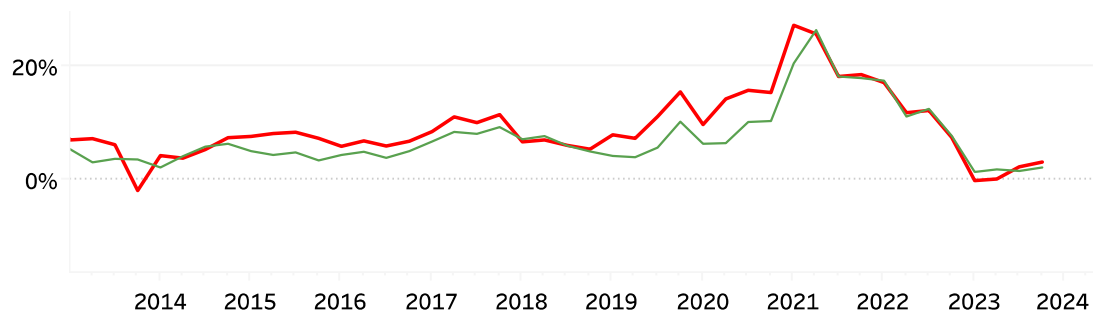
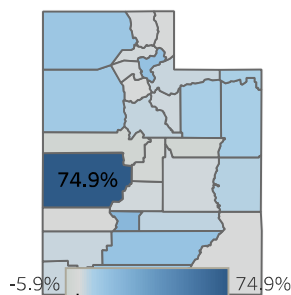


Annual Change in Gross Taxable Sales Fourth Quarter 2023

■ State of Utah ■ Utah County

3.1%
Utah County

2.2%
State of Utah



Construction & Sales

Higher financing costs limited construction spending in the county in the 2023 calendar year. Total permitting values declined 18% over the year. Residential permitting, which accounts for 61% of permitting values in the county fell by 23% to \$1.7 billion in 2023. Nonresidential permitting values fell by 12% in 2023, following a 5% increase in 2022.

Gross taxable sales rose 3.1% in the fourth quarter of 2023. Taxable services increased 6.5% to \$1.1 billion and taxable retail trade rose 2.9% to \$2.8 billion.

ECONOMIC SNAPSHOT Utah County



Nonfarm Jobs Fourth Quarter 2023*

	October 2023			November 2023			December 2023		
	Total Jobs	Year-Ago Numeric Change	Year-Ago Percent Change	Total Jobs	Year-Ago Numeric Change	Year-Ago Percent Change	Total Jobs	Year-Ago Numeric Change	Year-Ago Percent Change
TOTAL	311,138	3,661	1.2%	311,624	2,618	0.8%	311,469	5,541	1.8%
GOODS PRODUCTION	54,139	409	0.8%	53,767	322	0.6%	53,820	907	1.7%
Mining	287	25	9.5%	282	7	2.5%	290	15	5.5%
Construction	30,156	-117	-0.4%	29,890	-37	-0.1%	29,723	448	1.5%
Manufacturing	23,696	501	2.2%	23,595	352	1.5%	23,807	444	1.9%
SERVICE PRODUCTION	256,999	3,252	1.3%	257,857	2,296	0.9%	257,649	4,634	1.8%
Trade/Transport/Util	47,189	-97	-0.2%	48,312	-101	-0.2%	48,458	-646	-1.3%
Wholesale Trade	7,226	-740	-9.3%	7,180	-787	-9.9%	7,248	-644	-8.2%
Retail Trade	34,278	223	0.7%	35,252	379	1.1%	35,253	-290	-0.8%
Transportation/Warehousing	5,192	275	5.6%	5,382	155	3.0%	5,466	149	2.8%
Utilities	493	145	41.7%	498	152	43.9%	491	139	39.5%
Information	12,882	-2,498	-16.2%	12,763	-2,453	-16.1%	12,762	-2,360	-15.6%
Financial Activities	13,240	258	2.0%	13,225	220	1.7%	13,198	164	1.3%
Finance and Insurance	9,285	42	0.5%	9,323	66	0.7%	9,290	73	0.8%
Real Estate and Rental/Leasing	3,955	216	5.8%	3,902	154	4.1%	3,908	91	2.4%
Prof/Business Svcs	46,303	74	0.2%	45,920	-445	-1.0%	45,817	-294	-0.6%
Professional/Sci/Tech Svcs	25,794	-684	-2.6%	25,661	-1,016	-3.8%	25,814	-1,056	-3.9%
Management of Companies	3,019	382	14.5%	3,034	411	15.7%	3,058	451	17.3%
Admin Support/Waste Mgt	17,490	376	2.2%	17,225	160	0.9%	16,945	311	1.9%
Ed/Health/Social Svcs	65,208	2,302	3.7%	65,935	2,437	3.8%	65,914	4,846	7.9%
Educational Services	28,610	536	1.9%	29,011	582	2.0%	28,796	2,738	10.5%
Health Care/Social Services	36,598	1,766	5.1%	36,924	1,855	5.3%	37,118	2,108	6.0%
Leisure/Hospitality	28,374	1,288	4.8%	27,972	705	2.6%	27,811	812	3.0%
Arts/Entertainment/Recreation	4,913	370	8.1%	4,721	150	3.3%	4,291	136	3.3%
Accommodation/Food Services	23,461	918	4.1%	23,251	555	2.4%	23,520	676	3.0%
Other Services	7,518	309	4.3%	7,497	189	2.6%	7,531	169	2.3%
Government	36,279	1,612	4.6%	36,224	1,737	5.0%	36,152	1,939	5.7%
Federal	1,185	95	8.7%	1,151	36	3.2%	1,154	52	4.7%
Local	25,405	1,157	4.8%	25,331	1,275	5.3%	25,294	1,458	6.1%
State	9,689	360	3.9%	9,742	426	4.6%	9,704	429	4.6%
Unclassified	6	4	200.0%	9	7	350.0%	6	4	200.0%
Covered Agriculture*	1,140	-31	-2.6%	1,052	23	2.2%	1,017	35	3.6%
Private	274,859	2,049	0.8%	275,400	881	0.3%	275,317	3,602	1.3%

*Preliminary: Source: Utah Department of Workforce Services.

Chapter 17.50

MIXED COMMERCIAL

Sections:

- 17.50.010 General Provisions.**
- 17.50.020 MC - Mixed Commercial - Purpose.**
- 17.50.030 Uses.**
- 17.50.040 Height.**
- 17.50.050 Fencing.**
- 17.50.060 Landscaping and Screening.**
- 17.50.070 Architectural Design.**
- 17.50.080 Development Standards.**
- 17.50.090 Parking Requirements.**
- 17.50.100 Maintenance of Premise.**
- 17.50.110 Storage of Merchandise.**
- 17.50.120 Special Provisions.**

17.50.010 General Provisions.

1. The objective in establishing the Mixed Commercial (MC) zone is to provide areas within the City where low intensity light industrial, research and development, professional and business services, retail and other commercial related uses may be located.
2. For permitted uses and uses which require a conditional use permit, refer to the Standard Land Use Table in [Appendix A](#).
3. Refer to the following Chapters and subsections for additional regulations:
 - a. [17.04](#) General and Supplemental Provisions
 - b. [17.20](#) Conditional Uses Generally
 - c. [17.16](#) Nonconforming buildings and uses
 - d. [17.18](#) Off-Street Parking
 - e. Title [18](#), Lindon City Sign Ordinance

17.50.020 MC - Mixed Commercial - Purpose.

It shall be the purpose of the MC District to provide areas in appropriate locations where low intensity light industrial (contained entirely within a building), research and development, professional and business services, retail and other commercial related uses not producing objectionable effects may be established, maintained and protected. The regulations of this district are designed to protect environmental quality, compatibility, competitiveness, and aesthetics of the district and adjacent areas.

17.50.030 Uses.

No building, structure or land shall be used or developed and no building or structure shall be erected, structurally altered, enlarged or maintained in the industrial zones except as provided as a permitted or conditional use by the Standard Land Use Table in [Appendix A](#). Any site which contains a legal nonconforming use must meet all applicable Lindon City ordinance requirements when the use is changed.

17.50.040 Height.

The maximum average height for all buildings and structures regulated by this chapter shall be 48 feet above finished grade. (See Section [17.02.010\(26\)](#))

17.50.050 Fencing.

1. A masonry or concrete fence seven (7) feet high, shall be constructed and maintained along any property line between a non-residential development and a residential use or a residential zone. The fence shall be constructed and maintained by the owner of the non-residential development. Perimeter fencing shall not exceed eight (8) feet in height without approval by the Planning Commission. In all commercial zones the Planning Commission may approve a landscaping screen in lieu of a fence, a fence other than a masonry fence or approve a fence height greater than eight (8) feet if it makes the following findings:

- a. The proposed fence/landscape screen provides an adequate buffer for the adjoining residential use;
- b. The appearance of the fence/landscape screen will not detract from the residential use and/or non-residential use of the property;
- c. The proposed fence/landscape screen will shield the residential use from noise, storage, traffic or any other characteristic of the non-residential use that is incompatible with residential uses.
- d. The Planning Commission may waive or adjust this fence/screening requirement upon findings that the fence is not needed to protect adjacent residential uses from adverse impacts and that such impacts can be mitigated in another appropriate manner. (Ord. 2012-12, amended, 2012)

17.50.060 Landscaping and Screening.

1. *Landscaping Objectives.* Landscaping plans shall be prepared with a view toward accomplishing the following design objectives (plans will be approved or denied based on how well these objectives are satisfied):
 - a. Enhance the visual environment by:
 - i. Adding visual interest through texture, color, size, shape, etc., and
 - ii. Enhancing perspective by framing views, complementing architecture, screening, and creating points of interest and activity.
 - b. Ensure Public Safety by:
 - i. Guiding the circulation of cars and people,
 - ii. Controlling access to parking lots,
 - iii. Making traffic diverters prominent, and
 - iv. Creating Street Identification by varying the species, height, and location of landscaping.
 - v. Minimizing noise and glare.
 - vi. Conserving energy.
 - vii. Complementing architecture by landscaping around buildings.
 - viii. Screening areas of low visual interest.
2. *Overall Landscaping Plan.* With the application for site plan approval, an overall landscaping plan shall be submitted.
3. *Open Space.* A minimum of fifteen percent (15%) of each lot shall be maintained in permanent landscaped open space.
4. *Landscaping Strip.* Unless otherwise approved by the planning commission, a landscaped strip twenty feet (20') in width shall be landscaped to meet the design requirements of Chapter [17.19](#) and maintained in a living, growing condition along all public street frontages.
 - a. The measurement of the twenty (20) feet in landscaping will be measured from the back of walk, or back curb if no sidewalk exists. Areas with meandering sidewalks will have the twenty (20) feet measured from back of curb but may not count sidewalk width as part of the twenty (20) feet landscaping requirement.
 - b. Thirty percent (30%) of the landscaped strip may consist of decorative rock, bark, mulch, and/or other ground covers other than lawn. A planting/landscaping plan detailing types of ground covers, weed barriers, sprinklers, etc., in the nonlawn areas shall be submitted and approved by the planning director.

- c. Tree shall be planted thirty (30) feet on center, centered ten (10) feet from the edges of the strip in all required landscaped and bermed areas.
 - d. Landscaping requirements concerning trees and landscape materials can be changed and/or altered (with regard to location and design) upon approval of the Planning Commission at the site plan review stage of an application. No net loss of landscaping should occur with any approved alterations. Other landscaping layouts consistent with the Lindon City Commercial Design Guidelines may also be considered by the Planning Commission.
5. *Landscaped Berms.* Where possible, landscaped berms shall be constructed within required landscaped strips along public street frontages according to the following standards:
- a. Berms shall vary in height and shall be sculptured with enclaves, protrusion, etc. Berms shall be at least from two and one-half (2½) to four (4) feet in height with an average of three and one-half (3½) feet.
 - b. The slope of the berm shall be such as to be mowable with a standard rider mower.
 - c. Berms are not required where slopes within the required landscaped strip are excessive and would not reasonably accommodate berms.
6. *Trees.*
- a. Along perimeter public street frontages and along I-15, trees shall be a minimum of two inches (2") in caliper planted thirty (30) feet on center and planted at least seven (7) feet from any impermeable surface. Tree placement and location may be modified by the Planning Commission.
 - b. The recommended species are Sycamore, Shademaster Honey Locust, Sunburst Honey Locust, Little Leaf Linden, Norway Maple, and all flowering tree types.
7. *Sprinkling and Irrigation.* All plantings shall be serviced by an acceptable irrigation or sprinkler system, and maintained in a healthful living condition. Dead plant materials shall be replaced as necessary within the first year of planting.
8. *Landscaping Around Buildings.* A perimeter landscape strip at least five (5) feet wide shall be placed around all buildings.
9. A landscape strip with a fifteen (15) foot minimum width running the length of frontage along Interstate 15 shall be installed and maintained in the T zone. Trees shall be planted thirty (30) feet on center in the landscape strip. The location of the trees can be altered by the Planning Commission. (Ord. 2023-1 §1, amended, 2023)

17.50.070 Architectural Design.

1. All structures in the MC zone shall be aesthetically pleasing, well-proportioned buildings that blend with the surrounding property and structures. All structures in the MC zone shall have finishes of brick, decorative block,

stucco, wood, concrete tilt-up, or other materials and designs approved within the Lindon City Commercial Design Guidelines, or as otherwise approved by the Planning Commission.

- 2. Concrete tilt-up buildings shall comply with the following standards:
 - a. Painted or colored concrete exteriors are permitted. The shade of each color must be consistent.
 - b. Bare concrete exteriors are not permitted.
 - c. The exterior of a concrete tilt-up building shall be finished with additional architectural details such as entrance canopies, wrought iron railings and finishes, shutters, multi-level porches, metal shades, and metal awnings. (Ord. 2015-6, amended, 2015; Ord. 2012-8, amended, 2012)

17.50.080 Development Standards.

The minimum depth and/or length in feet for yards in districts regulated by this chapter shall be as follows, provided however, all of the provisions of the Uniform Building Code, the Uniform Fire Code, and other applicable Ordinances and Requirements must also be complied with:

Minimum Lot Area:	1 Ac
Minimum Frontage:	100 Ft
Lot Setbacks (Minimum)	
Front:	20 Ft
Side:	0 Ft
Side when adjacent to a street:	20 Ft
Side without one hour firewall:	20 Ft
Rear:	0 Ft
Rear when adjoining a parcel in a residential zone:	40 Ft
Maximum structure height:	48 Ft

17.50.090 Parking Requirements.

- 1. Parking spaces shall be required as per chapter [17.18](#) - Off-Street Parking. Off street parking shall also be subject to the following standards in the MC zone:

- a. All parking spaces, parking areas and driveways shall be constructed in accordance with standards established in [17.18](#) and the Lindon Land Development Policies, Standard Specifications and Drawings Handbook.
 - b. *Parking Setbacks.* All parking areas shall be set back a minimum of twenty (20) feet from all dedicated public streets and ten (10) feet from exterior boundaries of the zone.
 - c. *Screening of Parking Areas.* Where topography permits, required parking setbacks shall be landscaped with lawn and shall be planted with trees of sufficient height to screen and buffer parking and loading areas from adjoining public access streets.
 - d. All off street parking areas in the MC zone shall provide landscaped end islands at the end of each row of parking to delineate all on-site driveways. Each island shall have one (1) deciduous tree, unless the end island is within seventy-five (75) feet of a dedicated street right-of-way or within fifty (50) feet of a store front.
 - e. *Structured Parking.* Any parking structure above the finished ground elevation shall have the same setback requirements as outlined for buildings, and shall be architecturally integrated through use of the same or similar materials, colors, landscaping, etc.
2. *Parking Structure Height.* Freestanding parking structures shall comply with the same height requirements as main buildings.
 3. Lindon City rights-of-way shall not be used for employee parking.

17.50.100 Maintenance of Premise.

1. No excessive or offensive noise, dust, odor, smoke, or light, shall be emitted which is discernible beyond the site or parcel boundary lines in question, except that which emanates from the movement of motor vehicles. Premises shall be maintained in such a manner so as to avoid unreasonable interference with adjacent uses and to avoid public nuisances.
2. No person shall store junk, unlicensed and/or inoperable vehicles, partially or completely dismantled vehicles, or salvaged materials in the MC zone outside a building.
3. All solid waste storage facilities shall be enclosed with a block wall. The minimum access width to a solid waste storage facility shall be fifteen (15) feet.
4. No trash, rubbish, or weeds shall be allowed to accumulate on any lot in the MC zone. The space around buildings and structures shall be kept free from refuse, debris, and weeds. All waste shall be concealed from view from adjacent property.
5. The architecture, appearance, and aesthetics of all buildings, structures, and edifices in the MC zone shall be maintained to reasonable upkeep and maintenance standards.

17.50.110 Storage of Merchandise.

1. The storage of merchandise outside an approved building shall be in an area approved as part of the site plan and shall be within an area enclosed with a sight obscuring fence of at least six (6) feet in height; provided, however, that promotional displays, new car vehicle sales lots, and plant materials may be displayed outside of an approved building or enclosed area so long as they are placed appurtenant to a building wherein the business displays the bulk of its goods for sale.
2. This subsection shall not apply to temporary site plans under [17.17](#).
3. Landscaped areas and parking lots shall not be used for the displaying of merchandise.
4. Stacking of merchandise or materials of any kind shall not be allowed to protrude above required walls or fence lines unless approved by a temporary use permit.
5. No outdoor storage can be placed without any required fencing first being installed.
6. For outdoor storage areas required to be visually obscured, the Planning Commission may approve a landscaping screen in lieu of a fence, a fence other than a site obscuring fence or approve a fence height greater than six (6) feet if it makes the following findings:
 - a. The proposed fence/landscape screen provides an adequate buffer for the adjoining uses;
 - b. The appearance of the fence/landscape screen will not detract from adjoining uses and/or use of the property;
 - c. The proposed fence/landscape screen will shield the adjoining uses from noise, storage, traffic or any other characteristic of the storage use that is incompatible with adjoining uses.
 - d. The Planning Commission may waive or adjust this fence/screening requirement upon findings that the fence is not needed to protect adjacent uses from adverse impacts and that such impacts can be mitigated in another appropriate manner. (Ord. 2012-12, amended, 2012)

17.50.120 Special Provisions.

1. Street lights shall be installed on all public roads according to standards established in the Land Development Policies, Standard Specifications and Drawings Manual. Development lighting (not public street lights) shall not glare into adjacent residential areas.
2. Every site shall conform to the approved conditional use permit, site plan, or amended site plan. No structures or improvements may be added to a site that are not included on the approved site plan, original or amended. All improvements shown on the approved site plan or amended site plan shall be maintained in a neat and attractive manner. Failure to complete or maintain a site in accordance with this Chapter and with the approved site plan shall be a violation of this section. The City may initiate criminal and/or civil legal proceedings

against any person, firm or corporation, whether acting as principal, agent, property owner, lessee, employee or otherwise, for failure to complete or maintain a site in accordance with this Chapter and with the approved site plan. Any violation of this Chapter or any division thereof is punishable by a Class B misdemeanor. (Ord. 2022-14 §1, amended, 2022; Ord. 2012-12, amended, 2012; Ord. 2001-9, amended, 2001)

The Lindon City Code is current through Ordinance 2024-16, passed December 2, 2024.

Disclaimer: The city recorder's office has the official version of the Lindon City Code. Users should contact the city recorder's office for ordinances passed subsequent to the ordinance cited above.

[City Website: www.lindoncity.org](http://www.lindoncity.org)

[City Telephone: \(801\) 785-5043](tel:(801)785-5043)

[Hosted by General Code.](#)

FLOOD MAP

National Flood Hazard Layer FIRMette



LEGAL DESCRIPTION

COM N 215.51 FT & W 1768.45 FT FR SE COR SEC 29, T5S, R2E, SLM; S 86 59'21"W 174.85 FT; N 7 52'09"W 101.14 FT; N 81 56'38"E 41.67 FT; N 89 09'51"E 148.06 FT; S 29'32"W 99 FT TO BEG. AREA .43 OF AN ACRE.